

Crime In India : Categorization and Interpretation

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1. Background

1.1 What is Crime?

When an individual is wronged, or a misdeed is committed against the society, we can say that a crime has been committed. What wrongdoings constitute a crime varies from one nation-state to another, and it echoes the law of the land. An act is considered to be of criminal nature based on the consequences that follow.

1.2 What is an Offence?

An action that has the potential to harm others, disturb the tranquility of a society, waging wars against the State etc, is an offense. An offense is prohibited by criminal law and hence punishable by law.

1.3 What is a Cognizable Offence?

When the police has the authority to arrest an accused individual without a warrant for an offense, it is a cognizable offense. This authority is granted to the police by the code of criminal procedure.

1.4 What is the NCRB?

The National Crime Report Bureau, set up in 1986, is an agency of the Indian government whose duty is to collect and analyze crime data. It is a part of the Ministry of Home Affairs, and has its headquarters in New Delhi.

The NCRB, at present, functions through:

- CCTNS: Crime and Criminal Tracking Networks and Systems.
- Central Finger Print Bureau
- Statistical Branch
- Training Branch
- Data Centre and Technical Branch

Some of the objectives set out for the NCRB as per the government Resolution are as follows:

1. To function as a clearing house of information on crime and criminals including those operating at National and International levels so as to assist the investigators, and others in linking crimes to their perpetrators.
2. To store, coordinate and disseminate information on inter-state and international criminals from and to respective States, national investigating agencies, courts and prosecutors in India without having to refer to the Police Station records.
3. To collect and process crime statistics at the National level.
4. To coordinate, guide and assist the functioning of the State Crime Records Bureau.
5. To evaluate, develop and modernize crime Records Bureau
6. To function as the National storehouse of fingerprint (FP) records of convicted persons including FP records of foreign criminals.

-
7. To help trace interstate criminals by fingerprint search.

2. NCRB Crime Categories

2.1 Offences Affecting the Human Body

- It encompasses a wide range of criminal offenses which typically involves bodily violence, the fear of bodily harm, or other actions taken against an individual's will.
- Section 299 to 377 of IPC lays down several offenses relating to the human body.
- Example: Murder, Hurt, Sexual offences, Dowry death, wrongful confinement etc.

2.2 Offences Against the State

- Criminal activities that are directed against the existence of the state are grouped under Offences against the State.
- Example: waging war, collecting arms, assault on high officials

2.3 Offences Against Public Tranquility

- Offenses against the society at large which leads to public disturbance of peace
- Example: rioting, affray

2.4 Offences Against Property

- Criminal offenses that are executed against an individual's property that they own, or that belong to them are included in the broad category of offenses.
- Property can be any worldly possession, land, house or a belonging.
- Such offenses are often carried out by a person or a group to disrupt the lawful ownership of property by the rightful owner.
- Motivation to commit such an offense could be on account of a personal vendetta, revenge, disrupting order and peace, jealousy, dire need for that property, etc.
- An unintended consequence of such a criminal activity could be physical harm, and mental trauma.
- Theft, burglary, extortion and blackmailing, dacoity, robbery, dishonestly receiving/ dealing-in stolen property, attempt to commit dacoity/robbery, criminal misappropriation, criminal breach of trust, auto/motor vehicle theft.

2.5 Offences Relating to Documents and Property Marks

- Section 3 of the Indian evidence Act, 1872 defines a document as, "any matter expressed or described upon any substance by means of letters, figures or marks, or more than one of those means, intended to be used, or which may be used, for the purpose of recording that matter."
- Any act of a criminal nature that involves misuse of any paper format, computer records, important documents, identity cards etc, publicly or personally can be considered as a punishable offense relating to documents and property marks.

- This category of criminal offenses also covers forgery of documents. Forgery includes a false signature, document, and an imitation of a valuable object when carried out with a malicious intent to deceive another.
- Counterfeiting, cheating, and frauds are other offenses under this category.

2.6 Miscellaneous IPC Crimes

- This category of offenses includes more criminal acts that are of a discrete and particular disposition.
- Offenses relating to Elections, harboring an offender, rash driving, arson, sale of obscene books/objects, criminal intimidation, cheating by impersonation etc, are a few crimes under this category.

3. Comparative Analysis of Four States

3.1 Outline

We chose Assam, Gujarat, Kerala and Punjab for a state-wise analysis since they represent different parts of India in terms of their geography and culture. The four of us belong to each of the states selected. Our group discussions, debates and write ups are inspired by the two assigned readings: 1] Chapter 1 of the book Whole Numbers and Half Truths by Rukmini.S ; and 2] PUCL report on UAPA. Each section of our booklet on categorisation of crime and its interpretation, starts with a word cloud wherein the words are mapped against their frequencies in the relevant dataset. All graphs have been carefully designed to be colour-blind friendly. The Appendix at the end contains additional informative graphs for the interested reader.

3.2 Murder

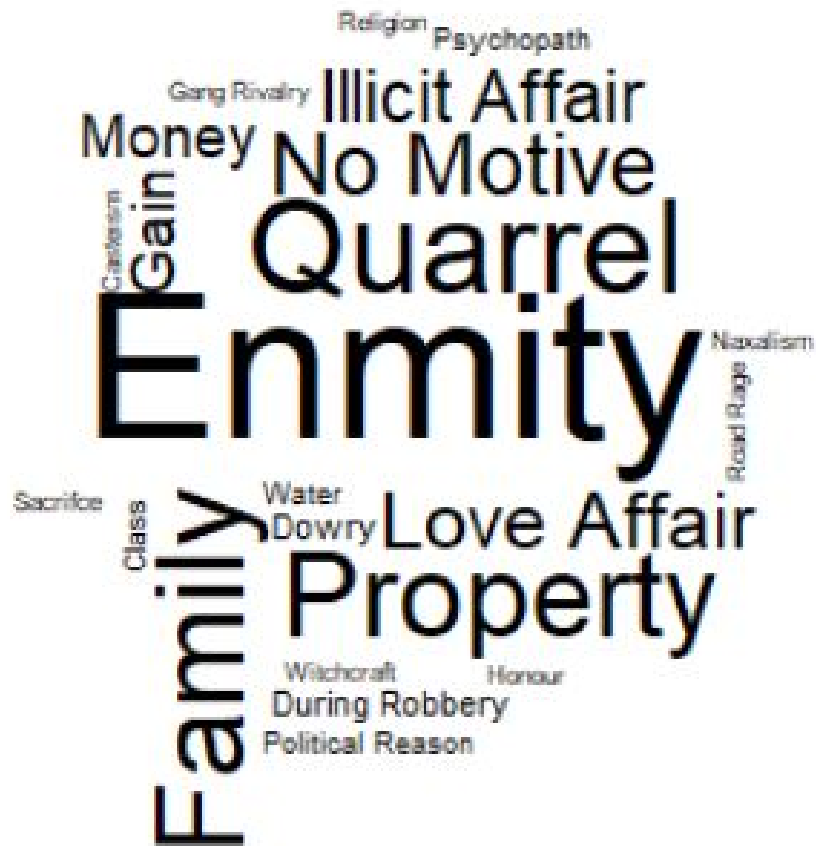


Figure 3.1:

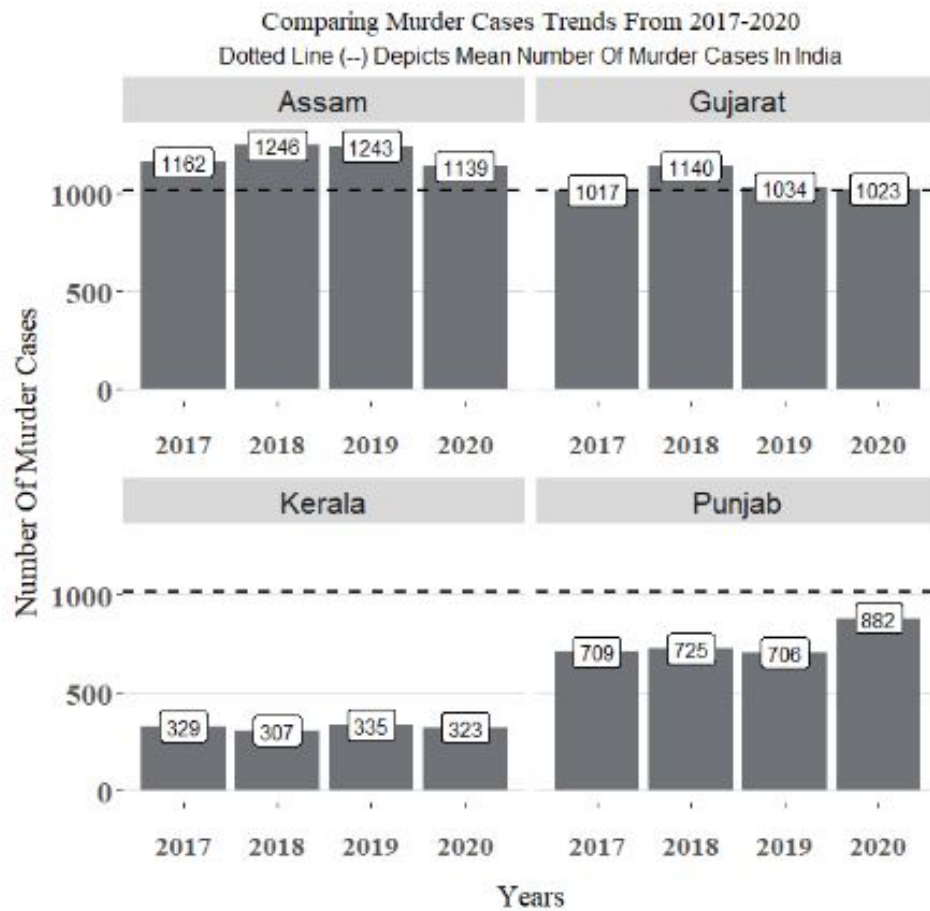
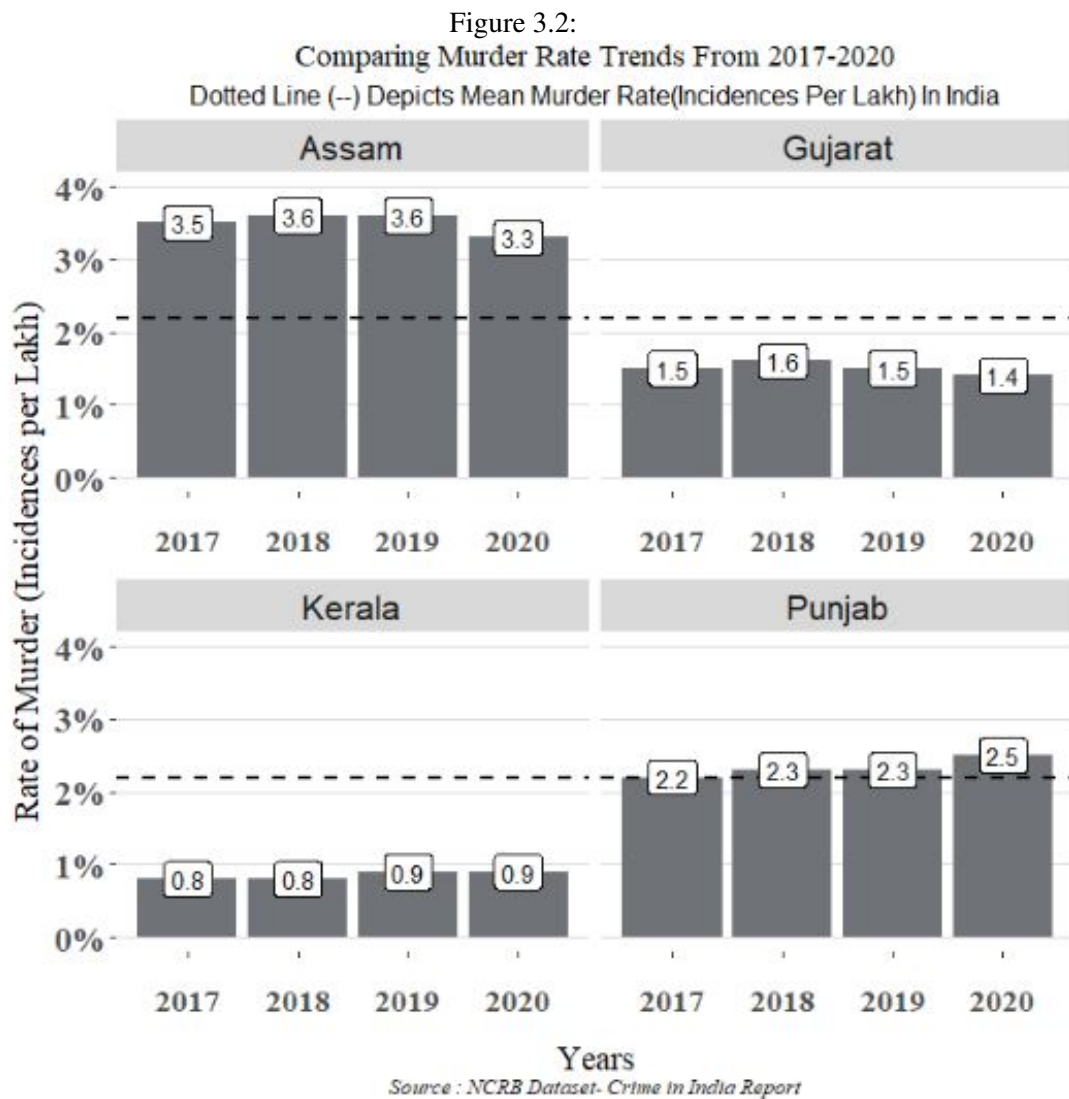


Fig. 3.1 shows that from 2017 to 2020, Assam consistently has shown the highest number of murder victims across the four states (Assam, Gujarat, Kerala, and Punjab), hovering north of 1100 victims per year, higher than the national average of 1017 victims per year. Kerala, meanwhile, shows the lowest number of victims recorded, around 320 per year, less than a third of the national average. Assam and Gujarat fall above the national average, while Kerala and Punjab fall below.



The data on murder rate (which is the incidence of murder per lakh of people), shown in Fig 3.2, from the same time period has a slightly different story to tell. The only state that is significantly above the national average for murder rate is Assam. Punjab is located around the national average, and Kerala and Gujarat below the national average. While Assam has a murder rate more than twice that of Gujarat, in absolute numbers of victims, the difference is much smaller. This is due to the smaller population of Assam relative to Gujarat.

The trend, both in terms of the number of victims and of murder rates, shows neither significant improvement or deterioration over time.

Figure 3.3:

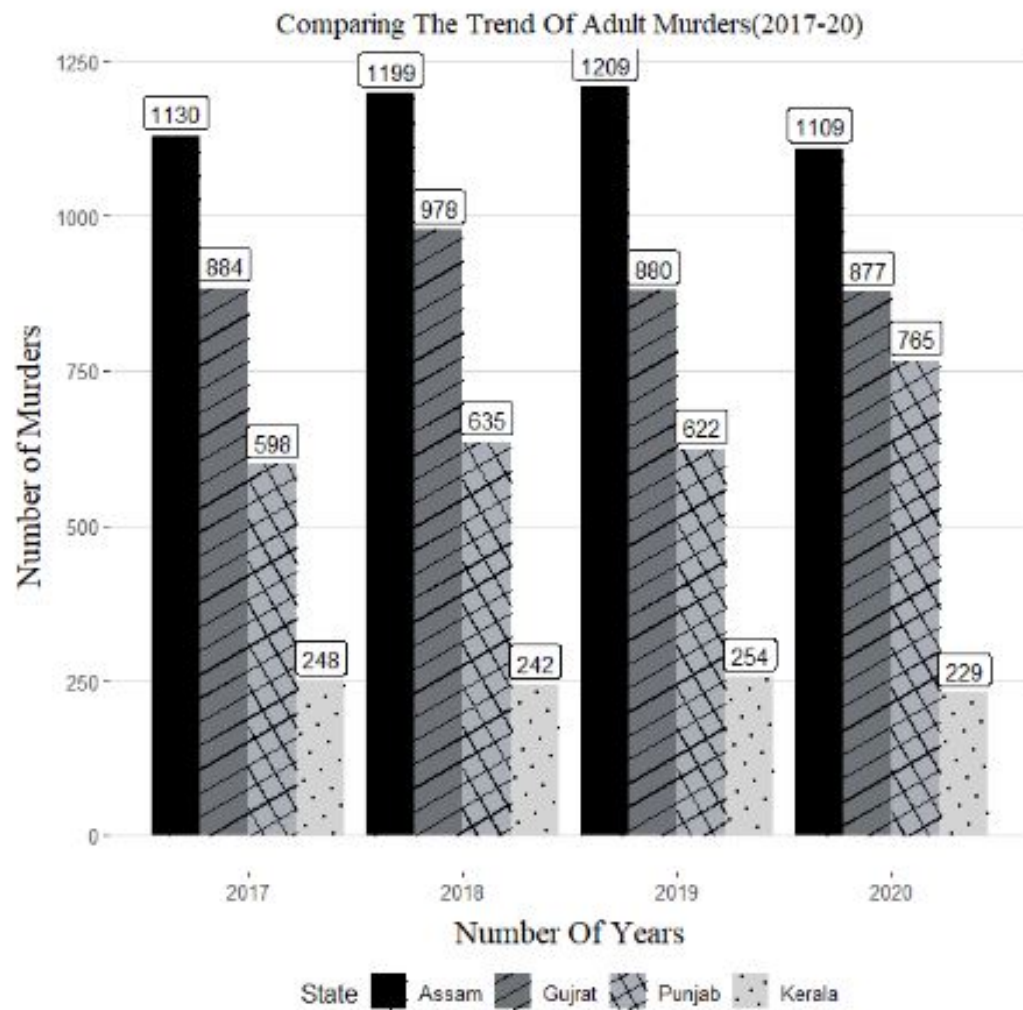


Figure 3.4:

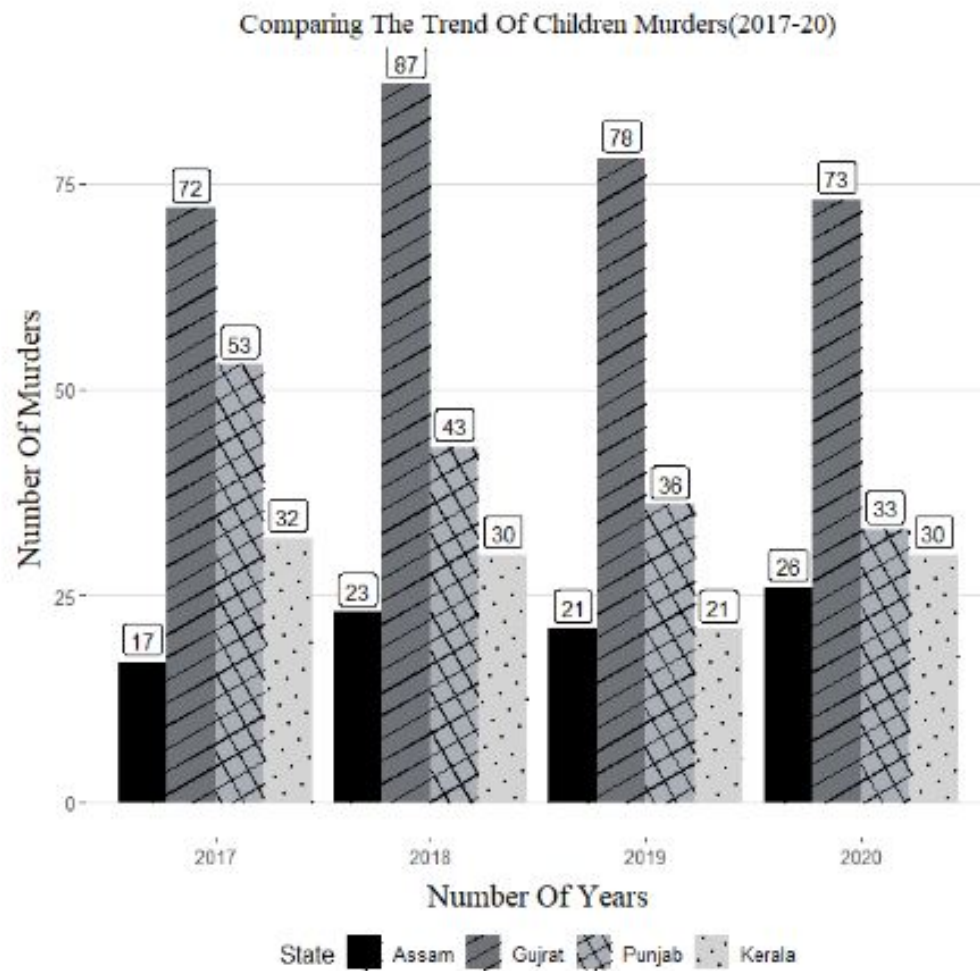
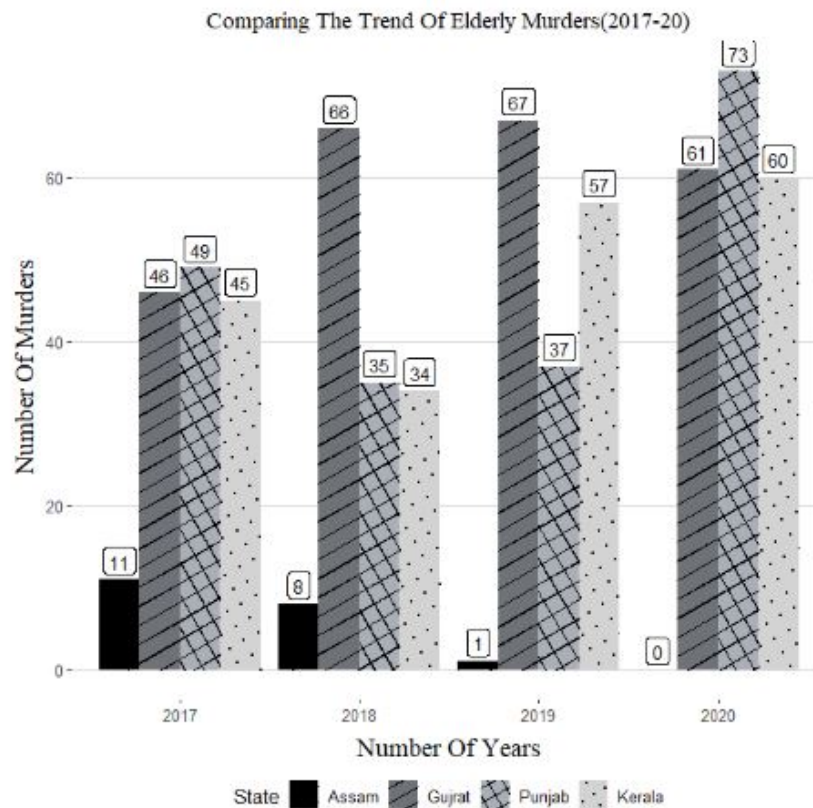


Figure 3.5:

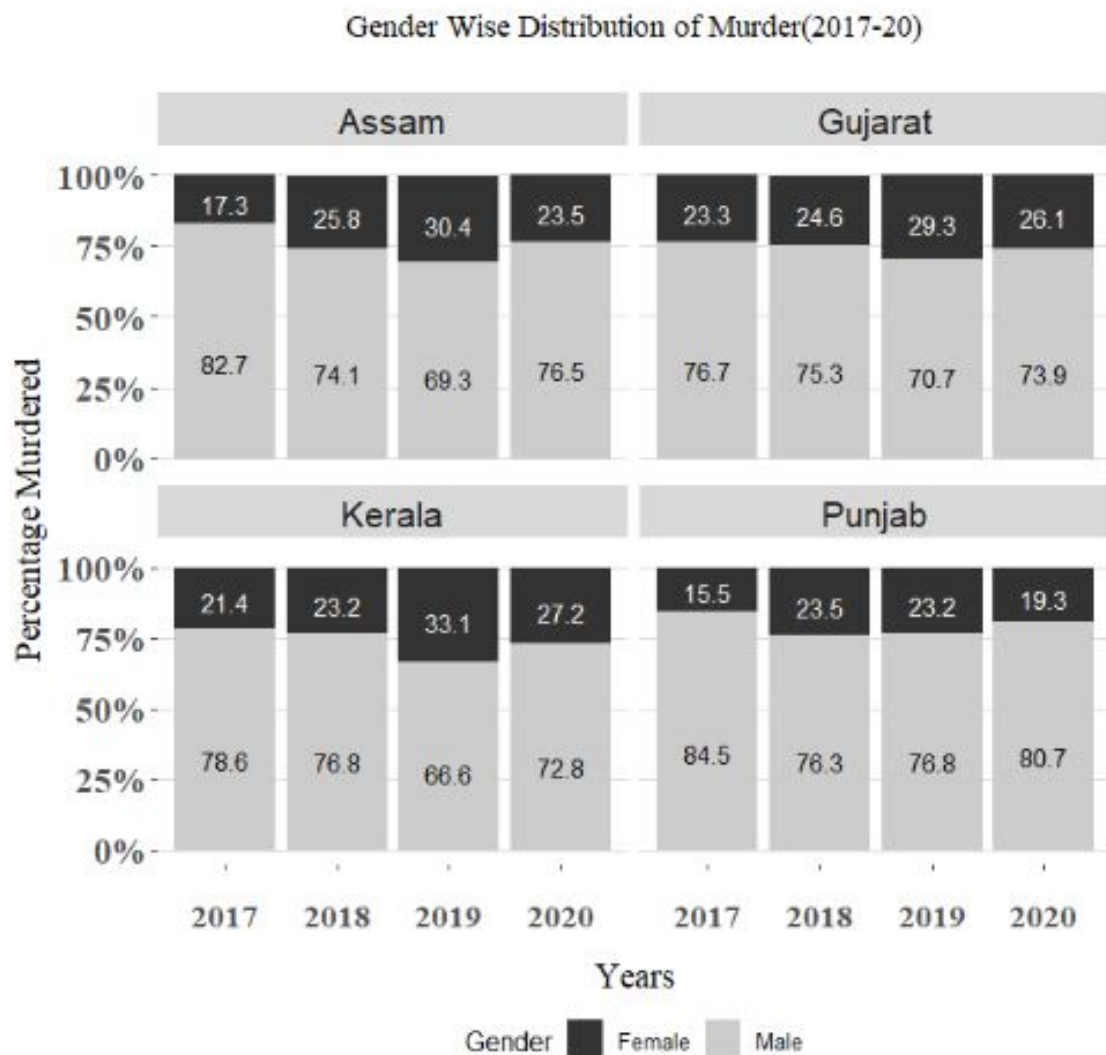


In line with the general trends noticed at the state-wise level, the number of murder victims for adults (defined here as those between the ages 16 to 60) is highest for Assam, then Gujarat, Punjab and Kerala (seen in Fig 3.3). Assam reports numbers ranging from around 1100 to 1200 victims per year, while Kerala reports, on average, a little less than 250. These trends are consistent over time.

Interestingly, as seen in Fig 3.4, when it comes to the number of victims under the age of 16, Assam reports the lowest among the four states, while Gujarat reports the highest. Gujarat reports roughly four times as many victims as Assam. While Assam, Gujarat and Kerala remain fairly consistent over the years, on a positive note, Punjab shows a declining trend for the number of victims, which fall from 53 in 2017, steadily to 33 in 2020.

For the elderly (those above 60 years), Assam reports a drastically lower number of victims than the other three states (seen in Fig 3.5). The trend in Assam is one of falling, while others, on the whole, show a rise. The exception is the year 2018, where the numbers fell for both Punjab and Kerala.

Figure 3.6:

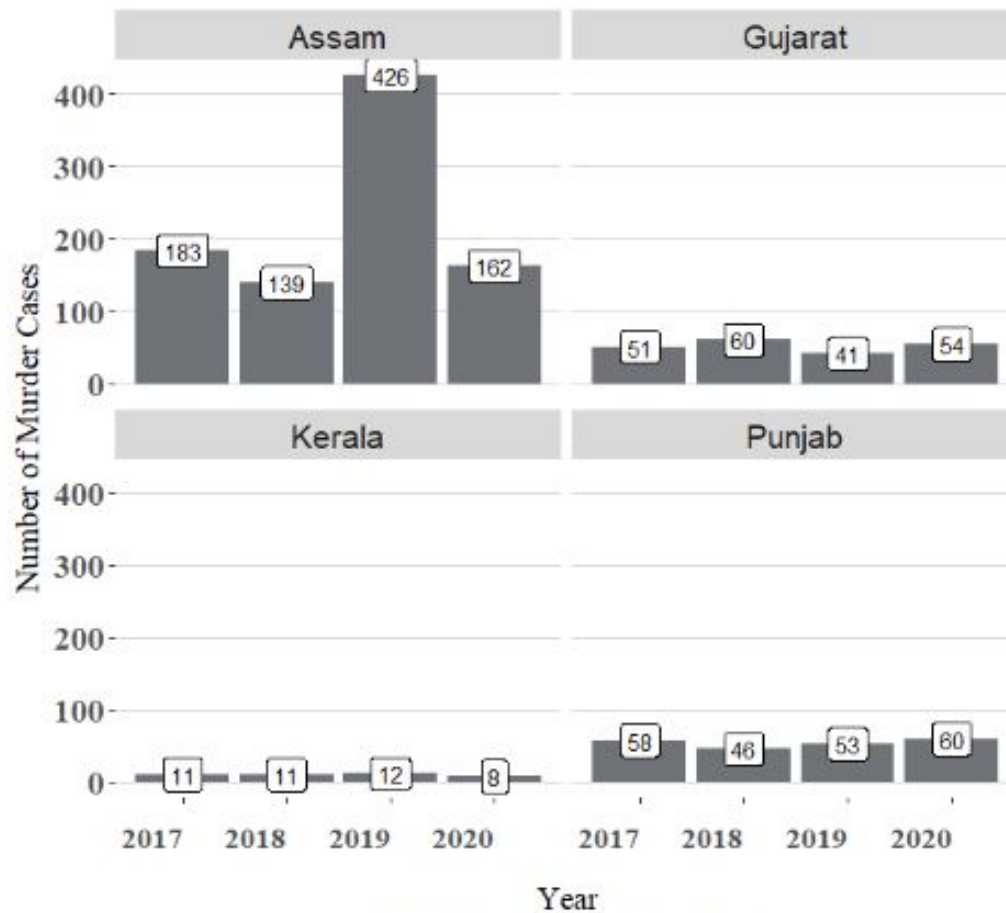


Source : NCRB Dataset- Crime in India Report

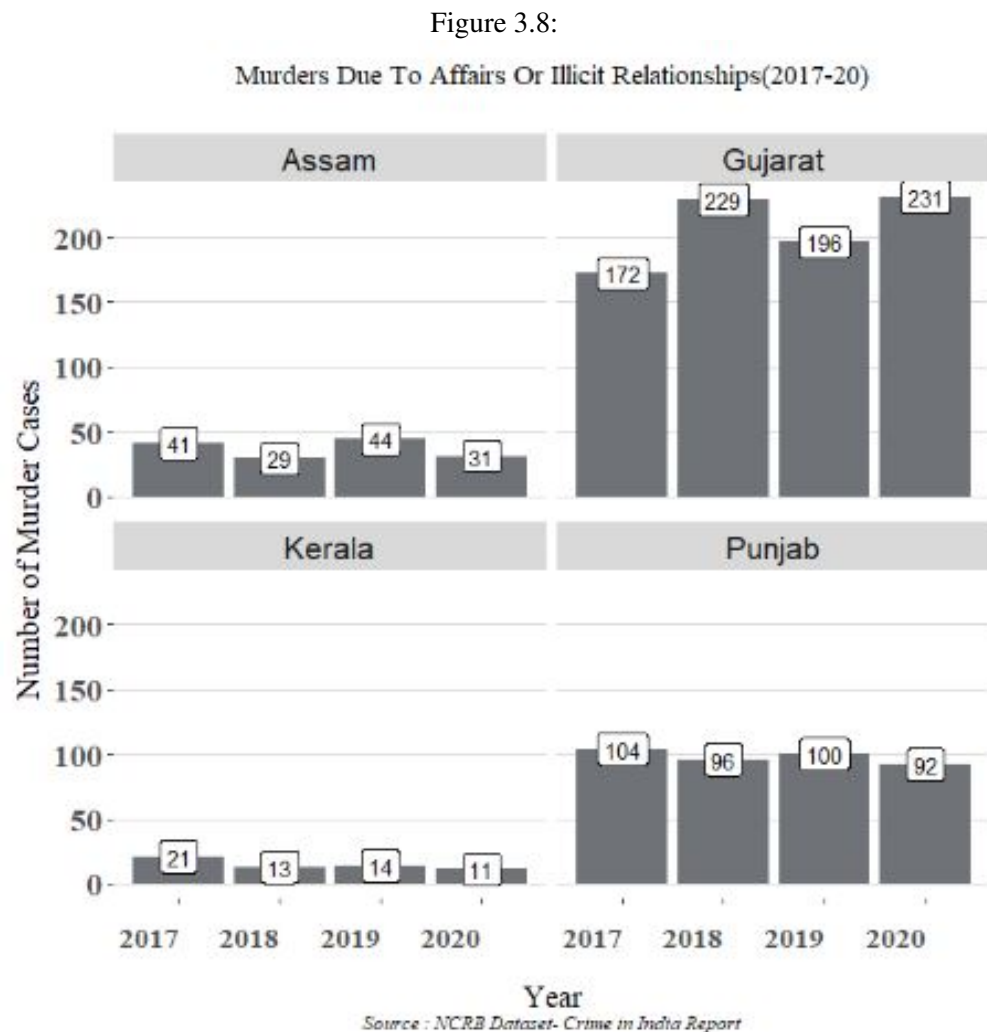
Fig 3.6 shows gender-wise distribution of murder victims is similar across all states. Male murder victims form the majority of all victims, with an average of around 3 times more male victims than female. Punjab has a slightly higher proportion of male victims to female victims, though not by a lot.

Figure 3.7:

Murder Due To Land Disputes(2017-20)



Source : NCRB Dataset- Crime in India Report



A look at the motivations reported behind the murders, shown in Fig 3.7 and Fig 3.8 reveals some differences between the states. Assam shows land disputes as driving more murders than the other states. In Gujarat and Punjab, affairs and illicit relationships were reported as motivations much more often than in Assam and Kerala. Within this, Gujarat showed almost twice as many murders motivated by affairs as in Punjab.

3.3 Human Trafficking

Petty Crimes
Labour
Marriage
Prostitution
Servitude

Figure 3.9:

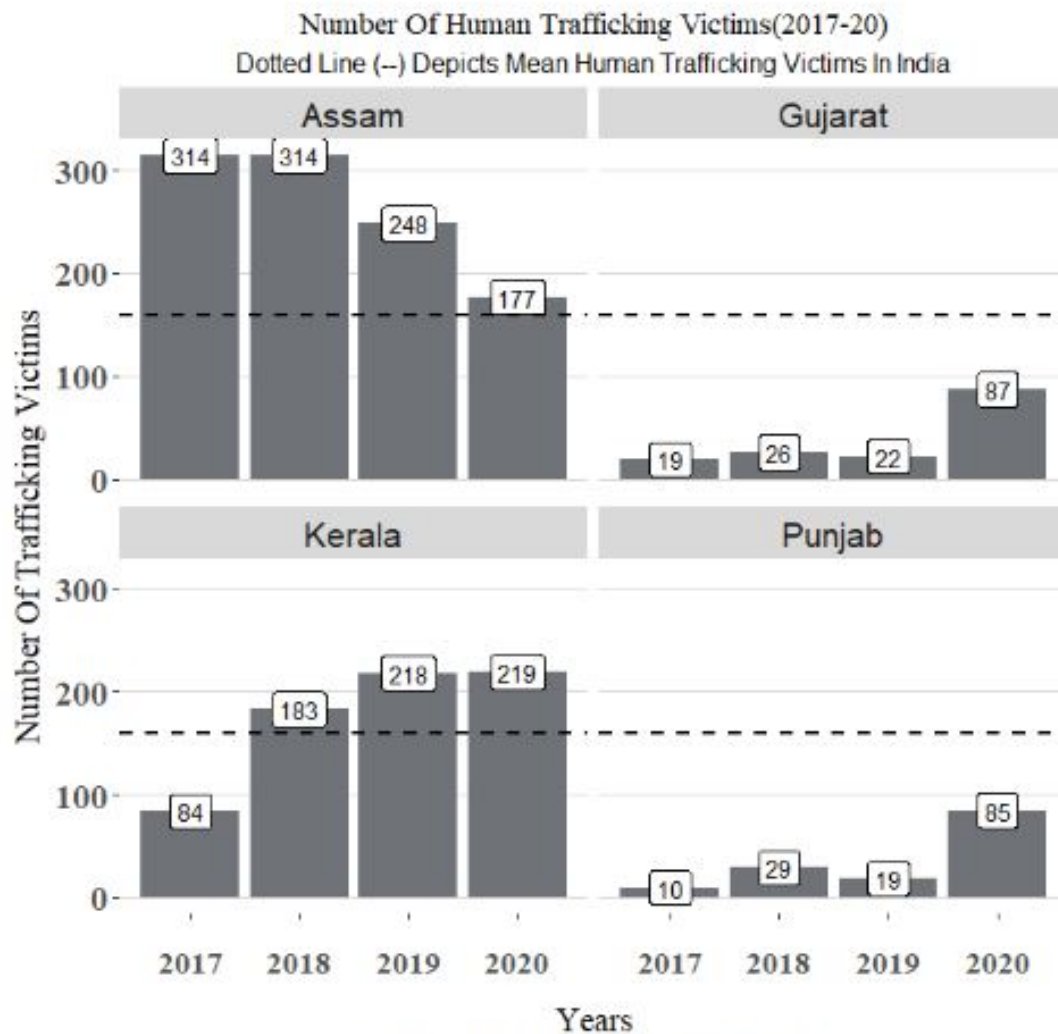
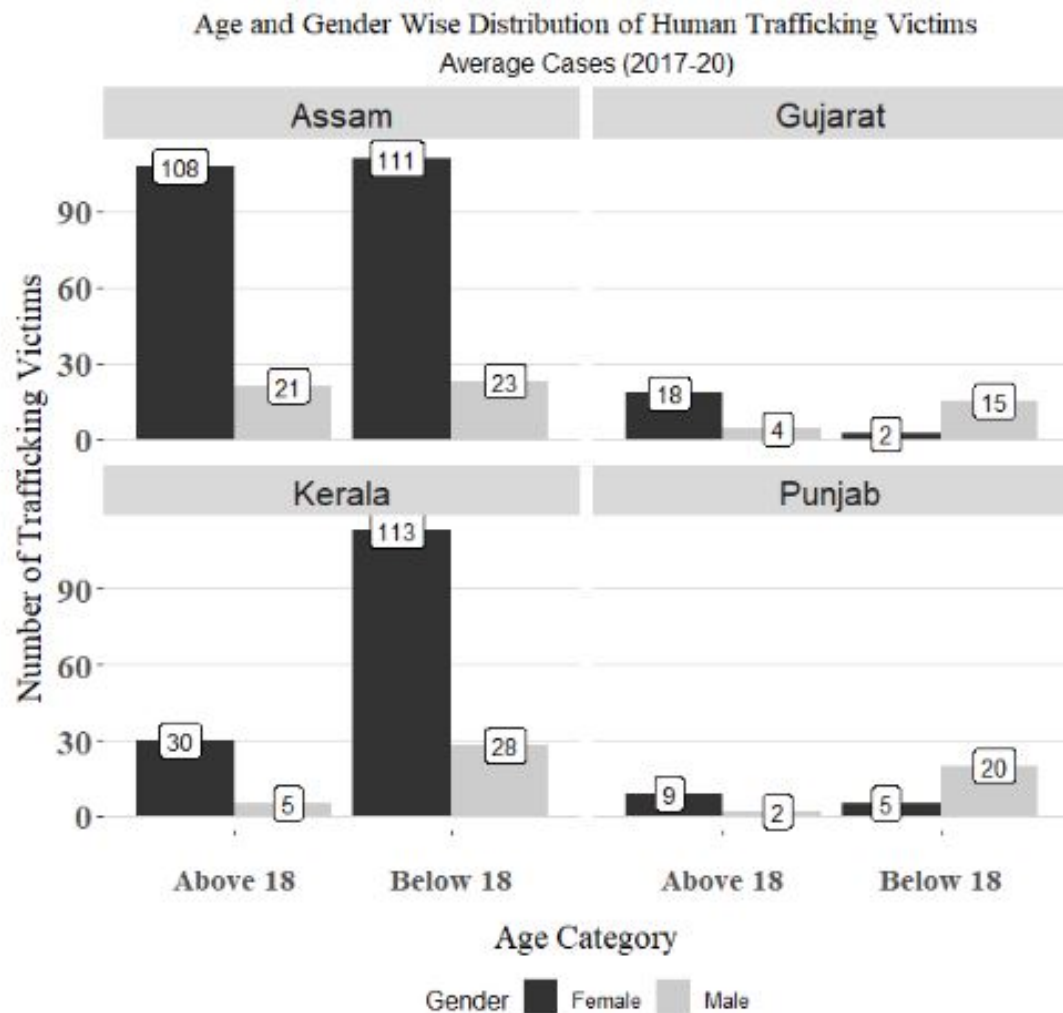


Figure 3.10:

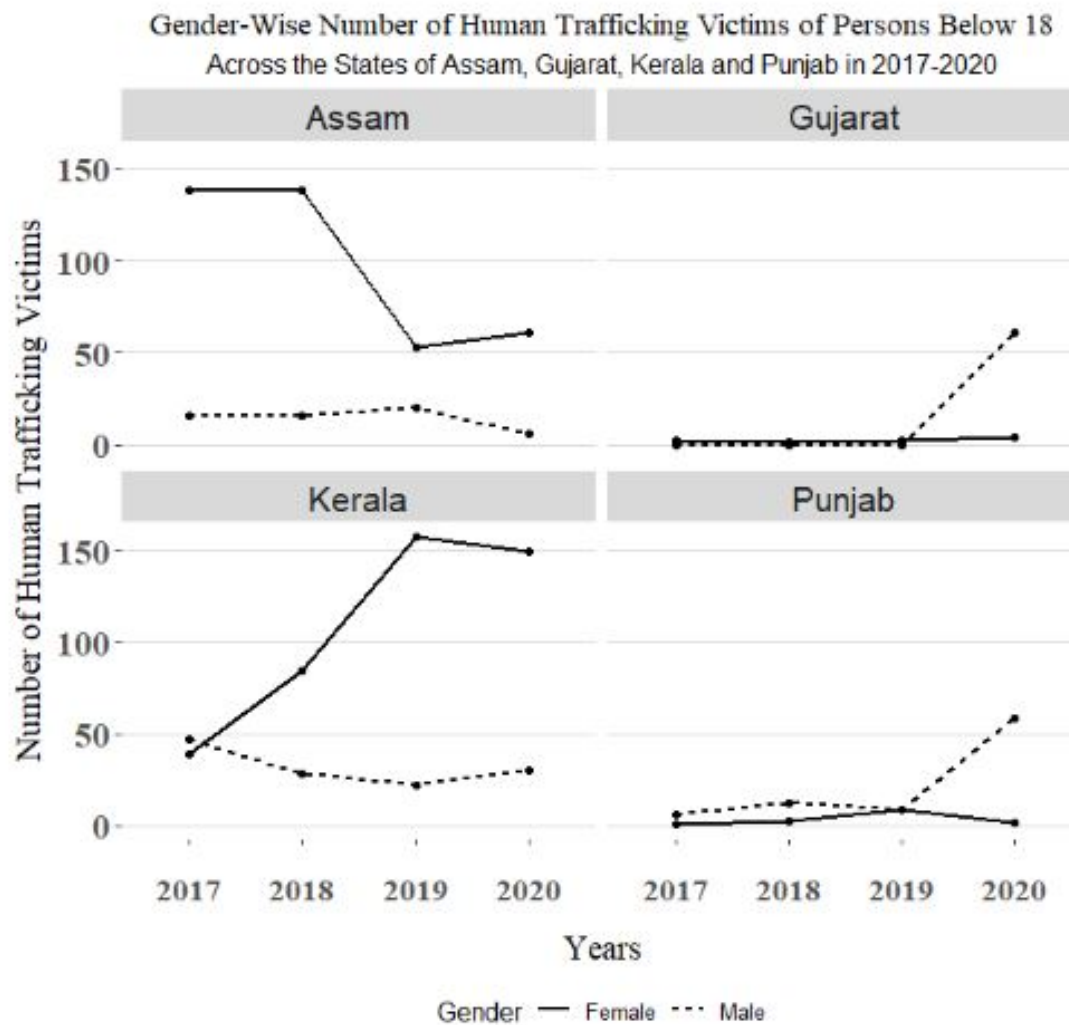


Source : NCRB Dataset- Crime in India Report

Fig 3.9 and 3.10, Compares the NCRB data on human trafficking for Assam, Gujarat, Kerala and Punjab; Assam shows a reduction in the number of victims, while the number of victims in the other 3 states have increased. There has been a huge difference in the number of victims across the 4 states over time.

Gujarat and Punjab show similar trends in the number of victims and also the age and gender wise data of the victims. In Assam and Kerala, the number of trafficking victims is greater among females than males by a huge margin across age. For Gujarat and Punjab, the number of victims is greater among females than males for the age group above 18 and the number of victims among males is greater than female for the age group below 18.

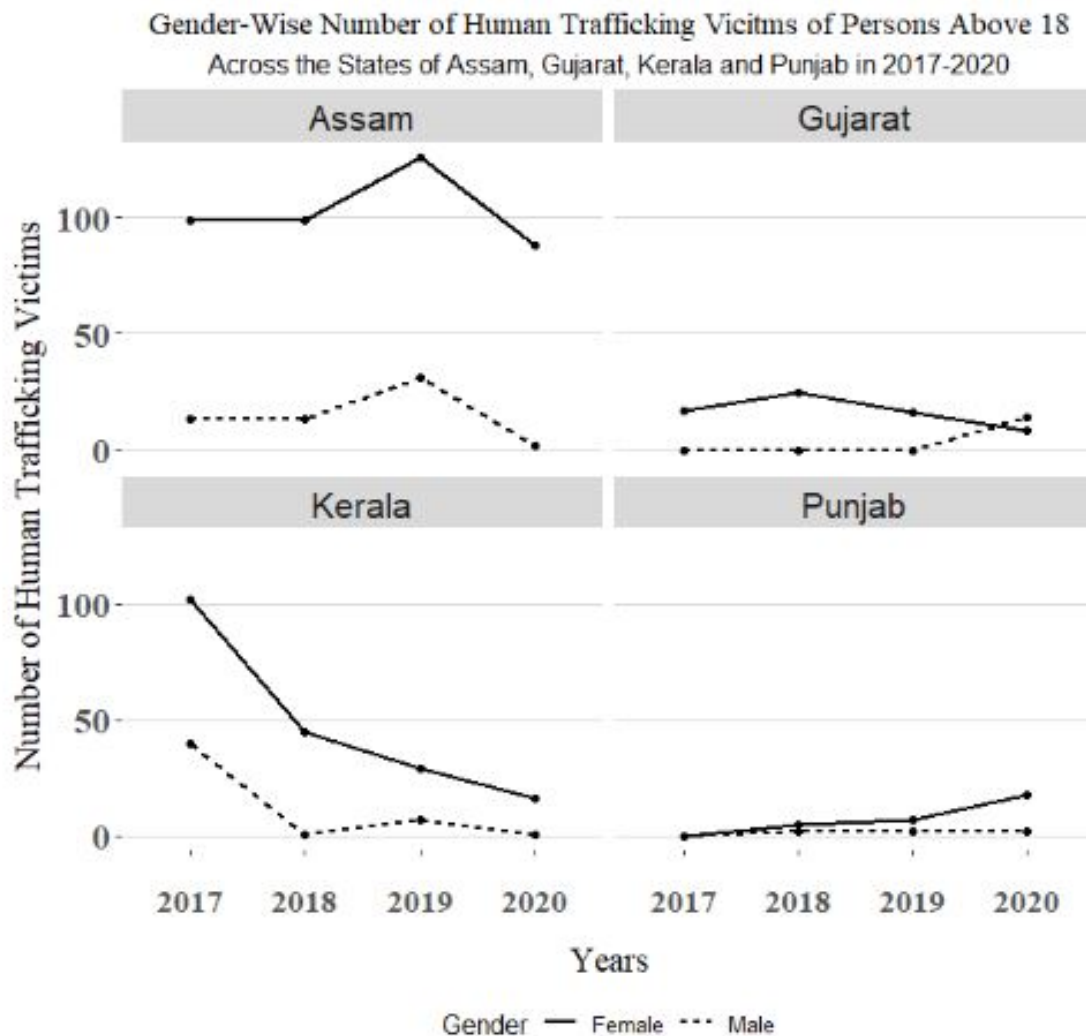
Figure 3.11:



Source : NCRB Dataset- Crime in India Report

Fig 3.11, shows that over the four year period from 2017-2020, Assam shows a huge decline in the number of female victims while the number of male victims shows a slight decline. Kerala shows a huge rise in the female victims while the number of male victims reduces slightly. Gujarat and Punjab show similar trend, the number of male and female victims seems similar until 2019, and for 2020 the number of male victims increases.

Figure 3.12:



Source : NCRB Dataset- Crime in India Report

Fig 3.12 shows the data on human trafficking for persons above 18 years of age. Females are more likely to be trafficked when they are above 18 years of age. Kerala shows a reduction in the number of human trafficking over the four year period.

Figure 3.13:

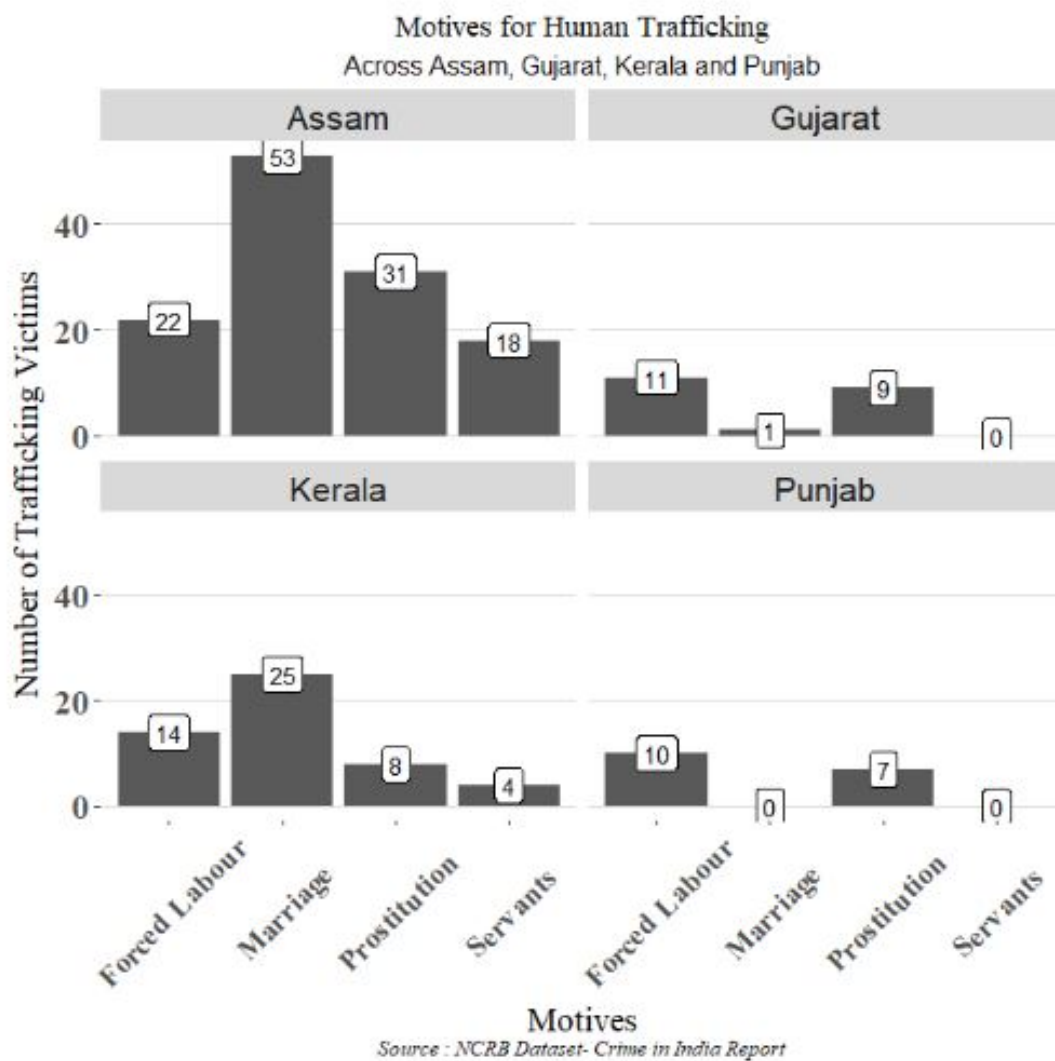
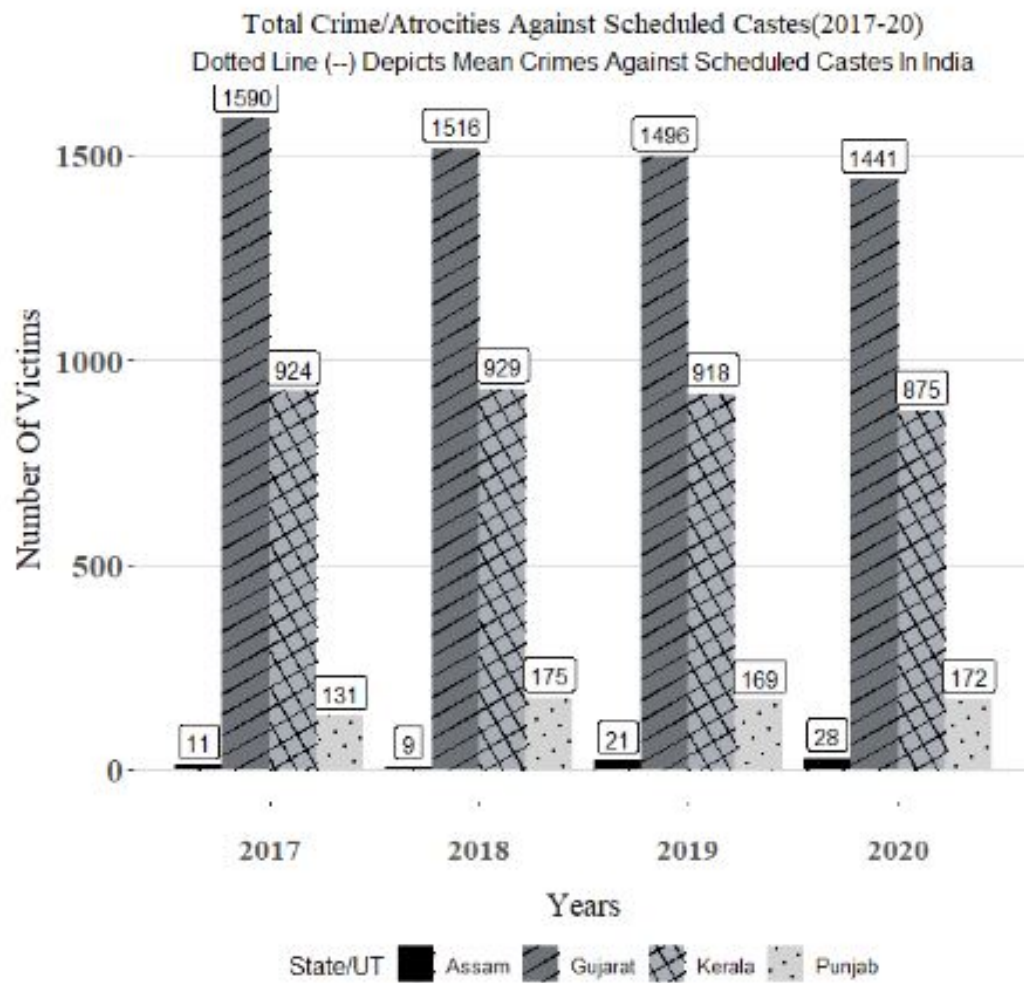


Fig 3.13 shows that Marriage seems to be the major motive of human trafficking in Assam and Kerala.

3.4 Crimes Against SC and ST

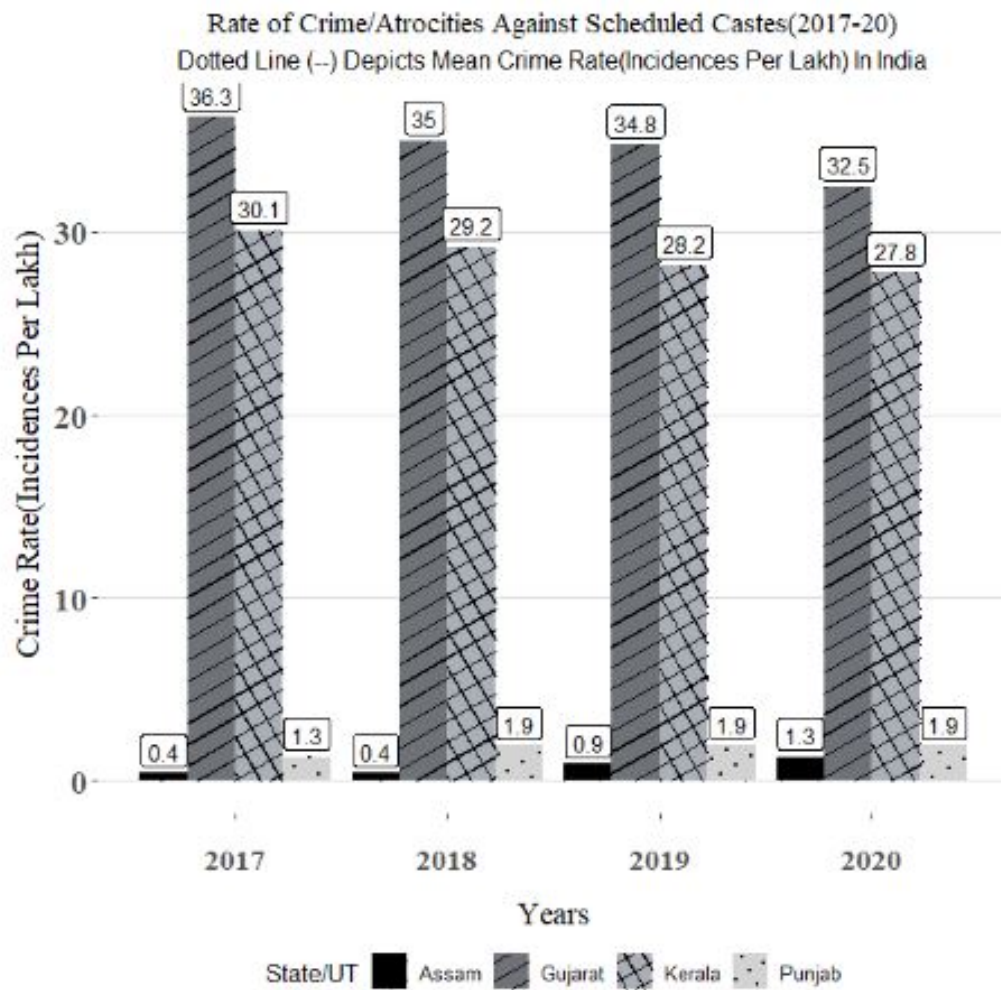


Figure 3.14:



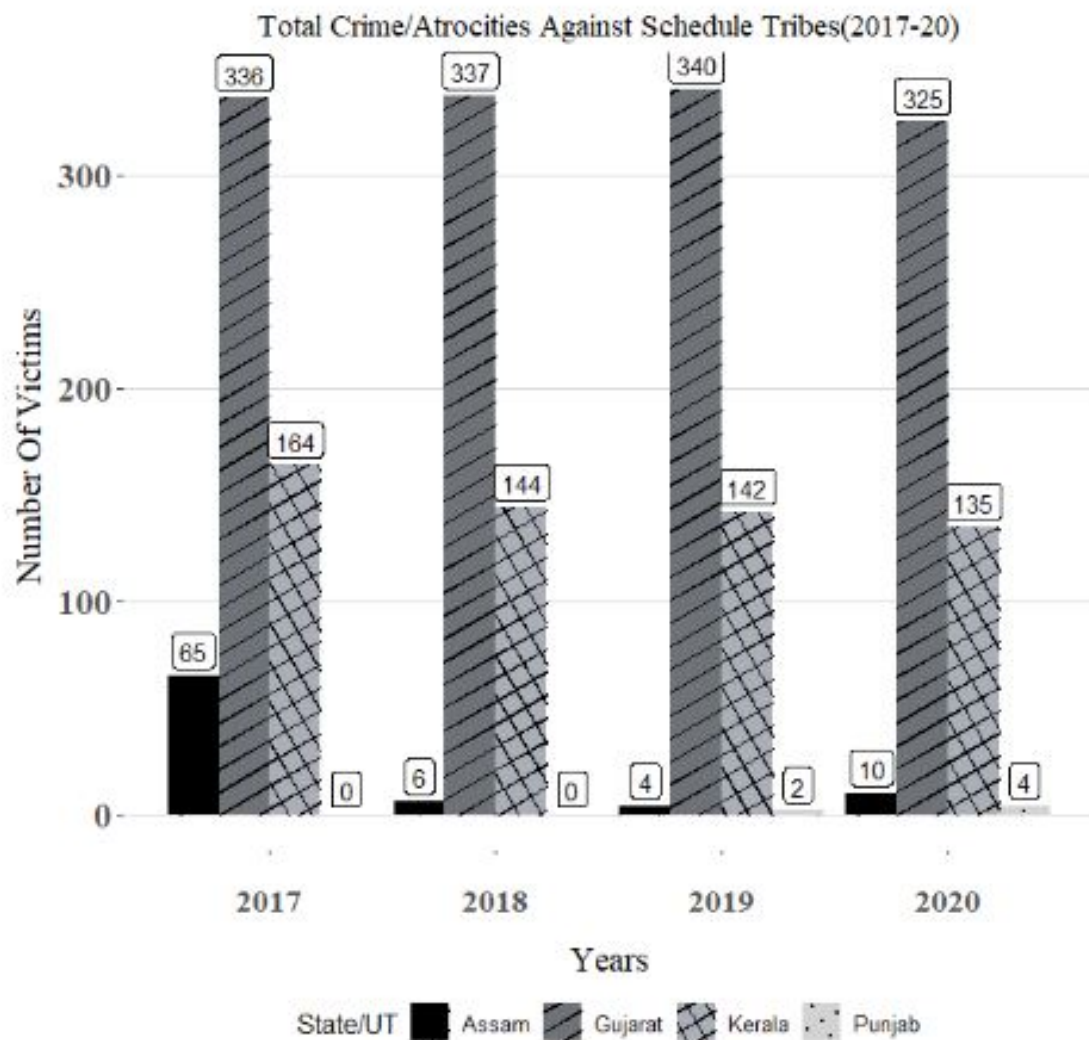
Source : NCRB Dataset- Crime In India Report

Figure 3.15:



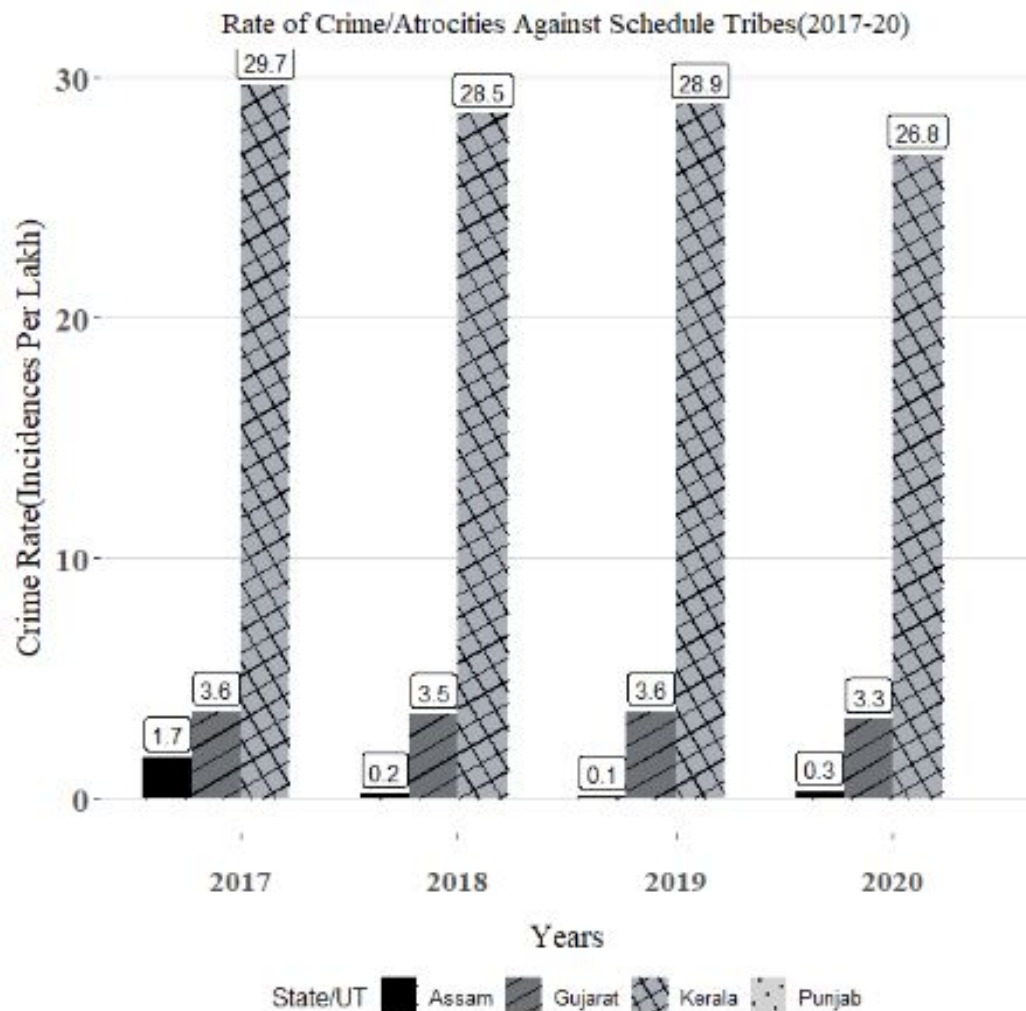
From 2017 to 2022, in Fig. 3.14 and 3.15 Gujarat consistently has the highest no. of victims of Crimes against Scheduled Castes, and Incidences per lakh as well. Followed by Kerala, Punjab and lastly Assam. It is to be noted that data for Gujarat and Kerala exhibits an overall trend of decrease in the number of victims, whereas The figures in Assam shows the increasing number of victims. The number of victims in Punjab have increased between 2017 and 2018, however they remain almost unchanged between 2018 to 2020 with the exact same figure of 1.9 for incidences per lakh.

Figure 3.16:



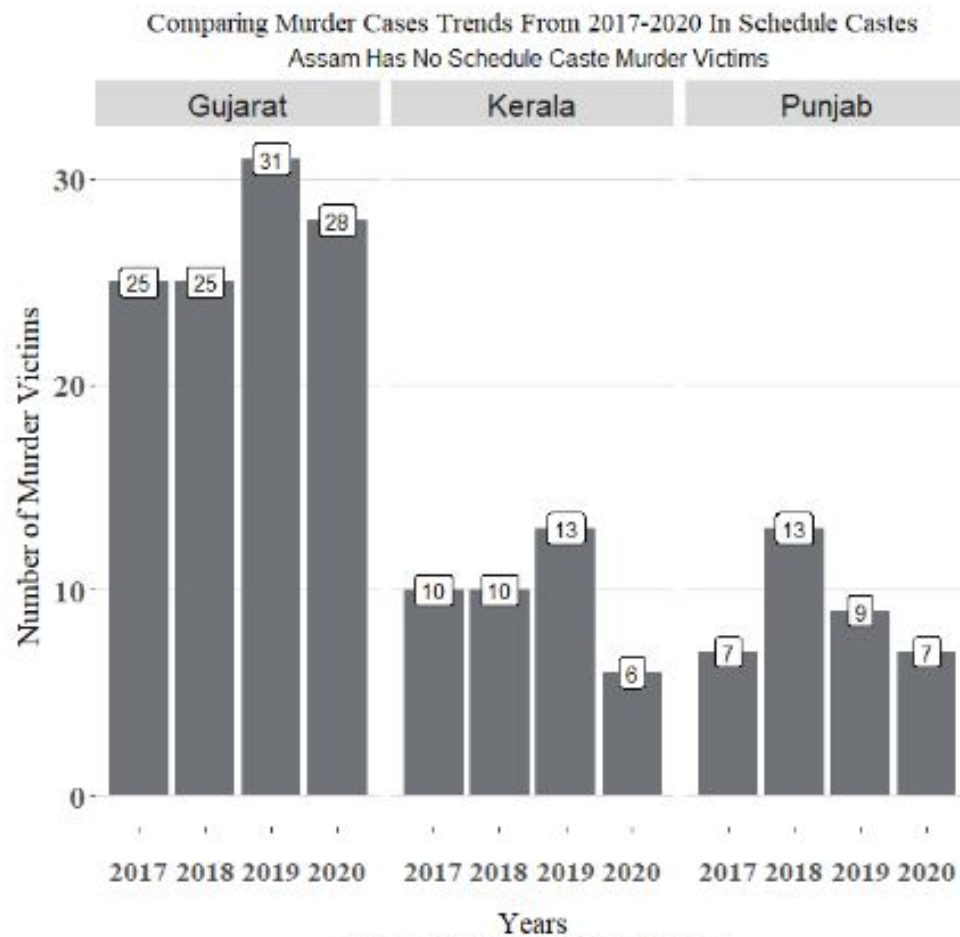
Source : NCRB Dataset- Crime in India Report

Figure 3.17:



In Fig. 3.16 and 3.17, Gujarat has the most no. of victims of Crimes against Scheduled Tribes, and Kerala has the highest crime rate (per lakh) for the same category. Punjab does not show up in the graph 3.4 at all due to the very low population of Scheduled Tribes in the state. The data for Gujarat in Fig 3.3 doesn't change significantly barring a slight decrease between from 2019 to 2020. The data for Kerala shows a general decrease in the number of victims, so does Assam. However, from 2019 to 2020, there is a slight increase in the number of victims. In graph 3.4, one can observe the overall decrease in crime rate in Assam and Kerala. The data for Gujarat also exhibits a similar trend but with a very small decrease of 0.3 percent from 2017 to 2020.

Figure 3.18:



Source : NCRB Dataset- Crime in India Report

Figure 3.19:

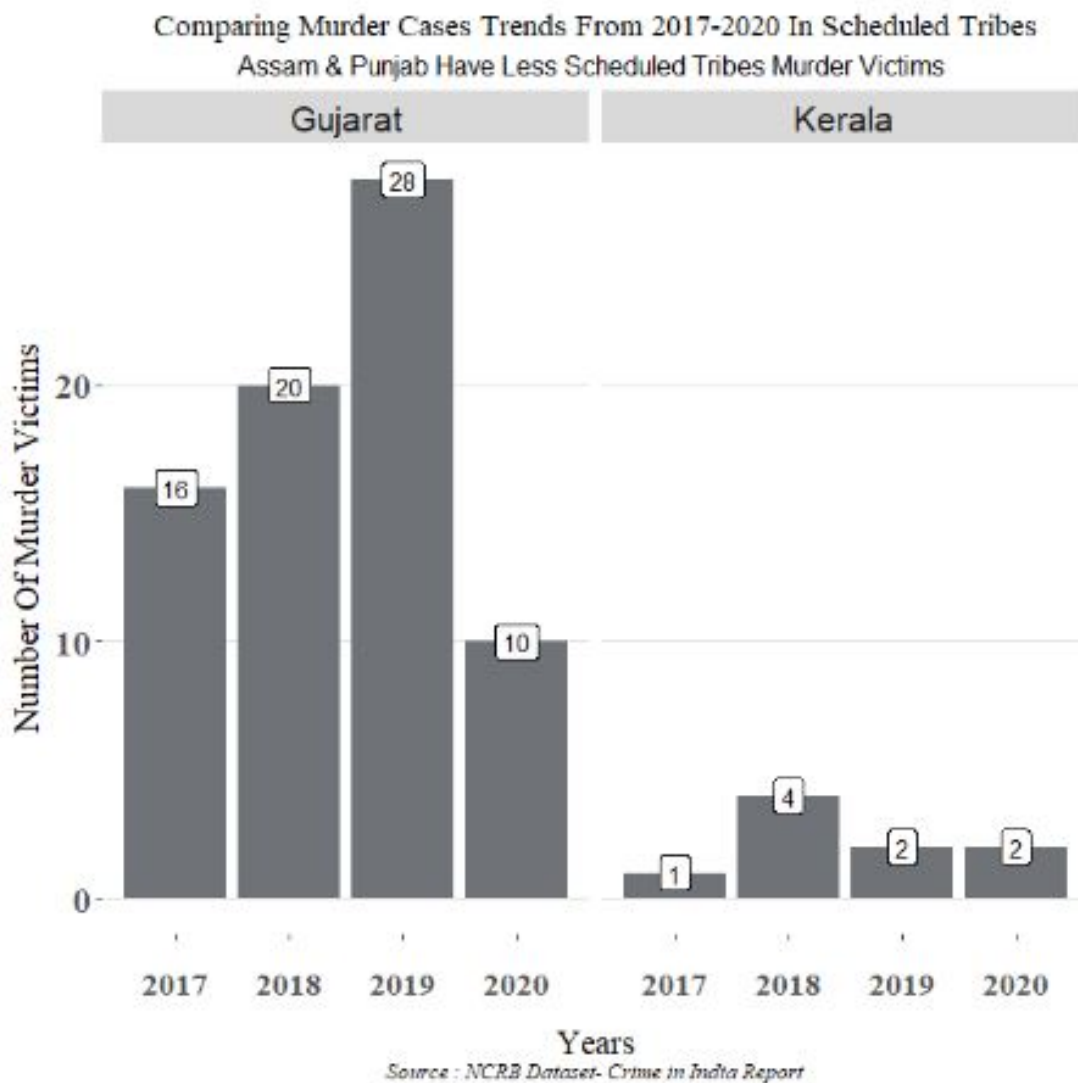
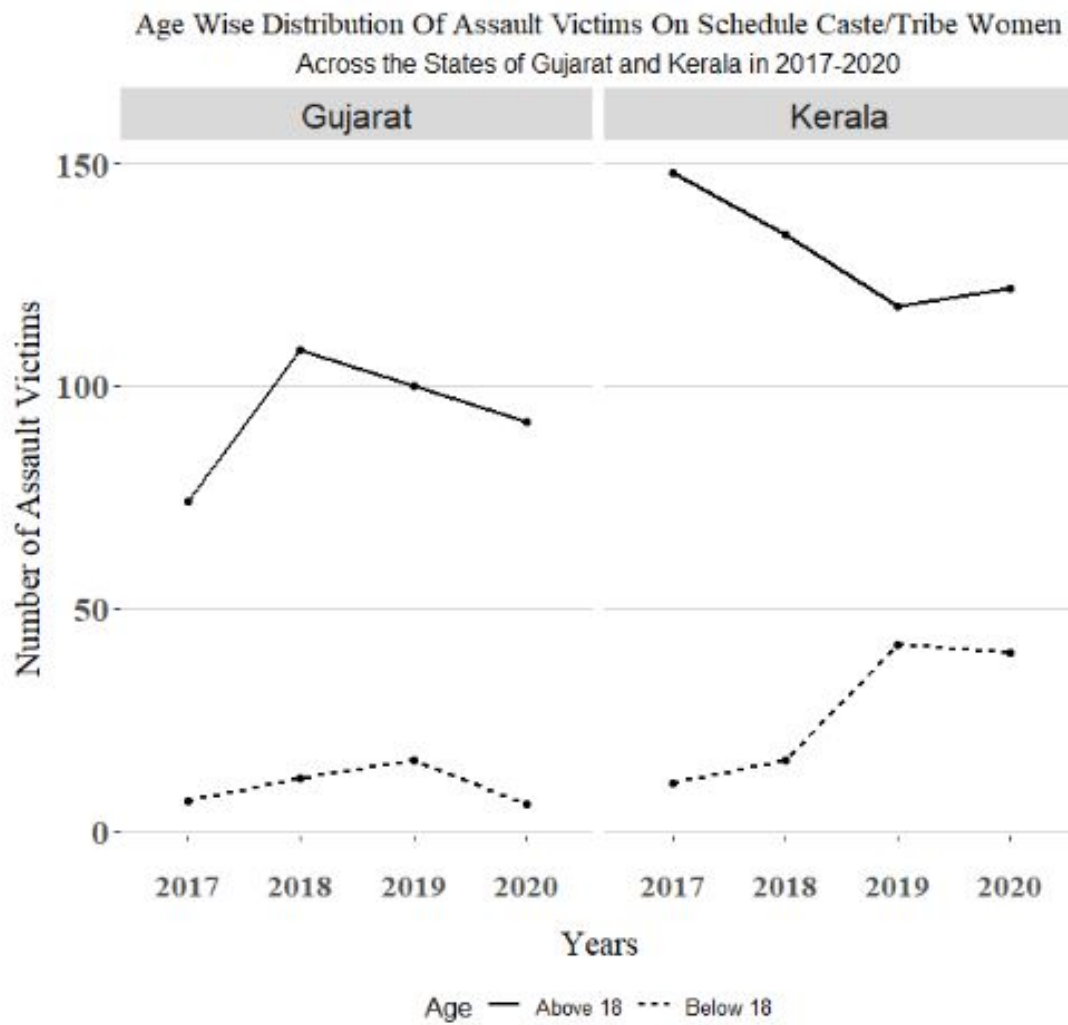


Fig 3.19 conveys how high the number of murder victims (belonging to SC) is in Gujarat as compared to Kerala and Punjab. Assam has no SC murder victims according to NCRB data. Fig 3.6 also conveys the highest number of murder victims belonging to SC, in Gujarat followed by Kerala having very low numbers. Assam and Punjab have no Scheduled Tribe Murder victims.

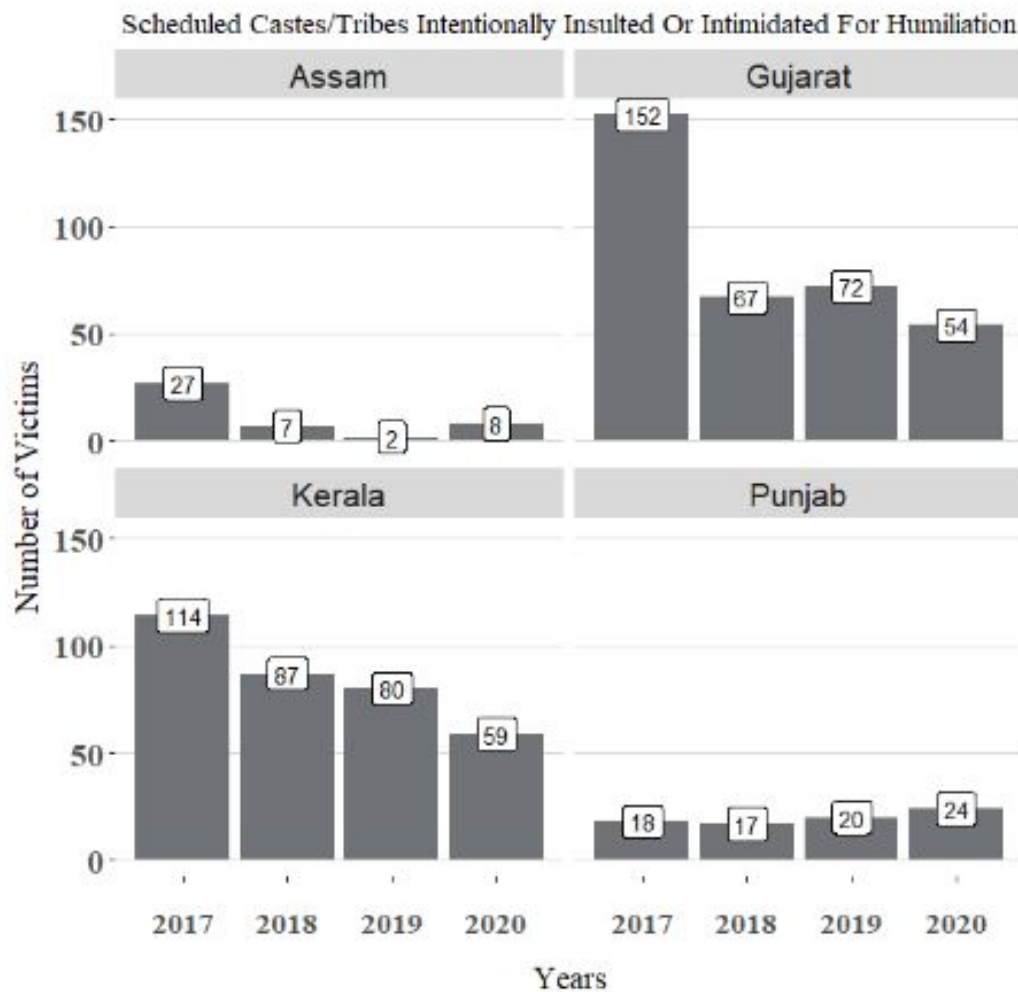
Figure 3.20:



Source : NCRB Dataset- Crime in India Report

Fig 3.20 visualises age-wise distribution of assault victims on Scheduled Caste/Tribe Women. Assam and Punjab have comparatively very low numbers, so their data has been excluded from this analysis. It is to be noted that the number of assault victims is higher for the people in the age category - above 18.

Figure 3.21:



Source : NCRB Dataset- Crime in India Report

From Fig 3.21, we can infer a higher number of victims of intentional insult or intimidation for humiliation in Gujarat and Kerala, as compared to Assam and Punjab. From 2017 to 2020, in Assam, Gujarat and Kerala, there is evident overall decrease in the number of victims, whereas Punjab shows an increase.

4. Last Words

4.1 Challenges in Crime Categorization

The present categorization of crime by NCRB covers about 53 categories that are put under 6 broad categories as elaborated upon in Part -1 of this booklet. Such a categorization of offenses under crime has been done beyond the provisions of the Indian Penal Code (IPC) and other local, special laws. As reported by The Hindu in October 2019, Dash and Rastogi write with reference to 2017 reports released by the NCRB - ‘While the report states that “socio-economic causative factors or reasons of crimes” have not been captured, the non-legislative parameters for classifying some offenses have not been adequately explained. This raises questions about the basis for classification. For instance, while reporting the offence of murder, NCRB has segregated the numbers based on the different motives for murder (honour killing and dowry, for instance). But the purpose of such classification would be achieved only if a more detailed description of the categories was provided (for motives such as “gain” or “class conflict”).

We believe that the objective methodology and rationale behind categorization of crime could be made more subjective and victim based. For example, let’s consider the sub-category Caste conflict under Offenses against Public Tranquility. After an incident of caste-conflict is registered as a number in NCRB’s database, their report won’t give us an idea about the motive behind the conflict, and between which castes did the conflict arise. If a student requires data on conflict between Dalits and Upper-castes, across a few states, they won’t be able to do so from NCRB data independently. Though the addition of the category ‘Atrocities against Dalits’ added for the first time in the 2017 report, recognizes a variety of various crimes committed against Dalits, we believe that instead of it being a sub-category, the broad categorisation itself should be an amalgamation of the present methodology, and a victim based approach.

While discussing methods of categorization of crime, we debated whether religion of the perpetrator of a crime, and its victim, should be considered while arriving at broad categories of crime. Would this sort of data help in understanding and evaluating circumstances that instigate such acts, or are the root cause of the same? We realised that the answer to this question could be a yes, however this would permit the police and investigating agencies to demand information on the religion of the accused and victim. Thereafter, allowing them to come to unnecessary and baseless conclusions. We also realised that in a victim based categorization we were ignoring crime against the male gender. We were then posed with a dilemma of what all to include as broad categories, and how detailed they should be. How relevant and practical is it to categorise crime based on the victim’s gender, religion, caste and age, all at the same time and without explicit overlaps?

4.2 Caveats & Limitations in Data Interpretation

The Crimes in India report released by the NCRB has been usually accepted at face value and data analysis relying on its statistics is presented as the absolute truth, which is far from being the case.

For a number of reasons, it is seriously inaccurate to interpret the NCRB report’s data as a representation of the actual level of crime in India. The obstacle to drawing such an inference is that crime reporting cannot be regarded as a reliable measure of real crime incidence. The NCRB relies on crimes reported in police stations to compile the database. When it comes to the Indian State, nothing could be more flawed. Some elements that frequently work to discourage crime reporting include societal and institutional pressures, inadequate protection, and a lack of assistance to victims.

In order to offer a complete picture, unofficial polls designed to estimate the true level of crime incidence are frequently done in conjunction with such reports. Unfortunately, the NCRB hasn't carried out any such exercise. For that reason, an increase or decrease in the crime rate cannot be taken at face value.

The report is also plagued by issues in data collection. It adheres to the "primary offence rule," which states that only the most serious offence (based on greater punishment term) from a single FIR/charge-sheet is taken into account for reporting purposes in order to prevent the issue of double counting. The same is done even when the offences are substantive and not merely incidental to the principal offence. This means that if a person is charged for rape and murder, NCRB will only count the offence of murder for the report and not rape! Even though NCRB acknowledges the problem of undercounting, it does nothing to resolve the issue.

Analysing NCRB's methodology of data collection shows that its crime rate estimates are unreliable and even misleading for some categories of crime. For example, there are three key problems with the estimates of crime rates, defined per million population. First, the population projections they use to calculate crime rates are outdated. Second, the method used to calculate crime rates varies from year to year, making it useless to simply compare crime rates between years. Third, for calculating crime rates for different groups different base year censuses are used, which prevents us from making any accurate inter-group comparisons of crime rates. The population projection is done based on the 2001 census when there is 2011 census data available. For 2011, the actual population data was used. Comparing annual growth in the population used by NCRB shows an abnormal spike in 2010-11 and a sharp fall in 2011-12. This speaks a lot about the reliability of crime rate statistics.

There is an even bigger problem with crime rates for the category - Crimes against Scheduled Castes/ Scheduled Tribes. Till 2011, the total population has been used to calculate crime rates in these categories. This has led to a gross underestimation of crime rates in the years leading up to 2011. After 2011 only the SC/ST population from the 2011 census was used. NCRB has been using the same population for all years after 2011. This suggests that using NCRB crime rate figures, especially for disaggregated categories, is fraught with risks if one is analysing trends over time.

The data doesn't show which classes/categories of people are more or less criminally active and which classes/categories of persons have a lesser or higher probability of victimisation. It also doesn't take into account the geographical distribution of both per lakh population as well as the incidence of crime, which is important considering the vast geographical area and uneven distribution of population in India.

There is an additional issue of misrepresentation of crimes in India. Sometimes, people who leave their homes by their will are reported as abducted, or women who marry (at a younger age, or to a person of different caste/religion) of their own will are reported as victims of rape, which creates a class of crimes which are absent but nevertheless reported. For example, an adult individual who leaves their home to live with a person of their own choice is reported as abducted, missing, or as a victim of rape. To save family honour and face, they are sometimes forced to return to their home.

While the realisation of the imminent issues with crime data collection and interpretation is widely acknowledged. In recent years, no active action has been taken to resolve them. A larger and diverse body including bureaucrats, police officers, social scientists, legal scholars, journalists, and members

of the civil society should be constituted to re-evaluate the existing broad categories of crime, system of collecting crime data, and presenting it in the annual reports. Unofficial surveys could become one of the ways to investigate adequacy of the previous annual reports, and shortcomings (if any) in the system. We believe that presenting a comprehensive, sensible and telling interpretation of the annual crime data will not only aid in policy making, but also in understanding the social fabric of our nation.

5. Appendix

Figure 5.1:

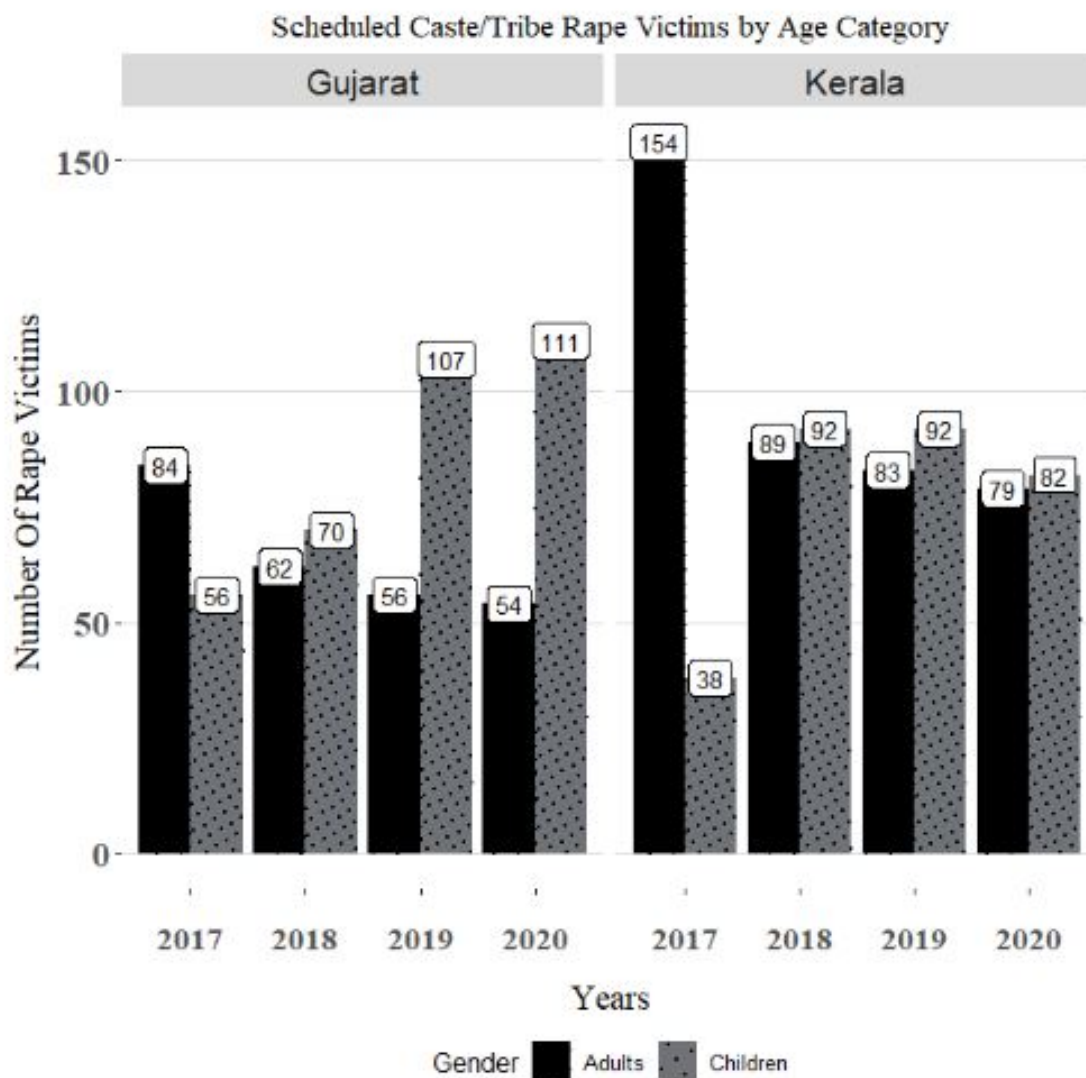
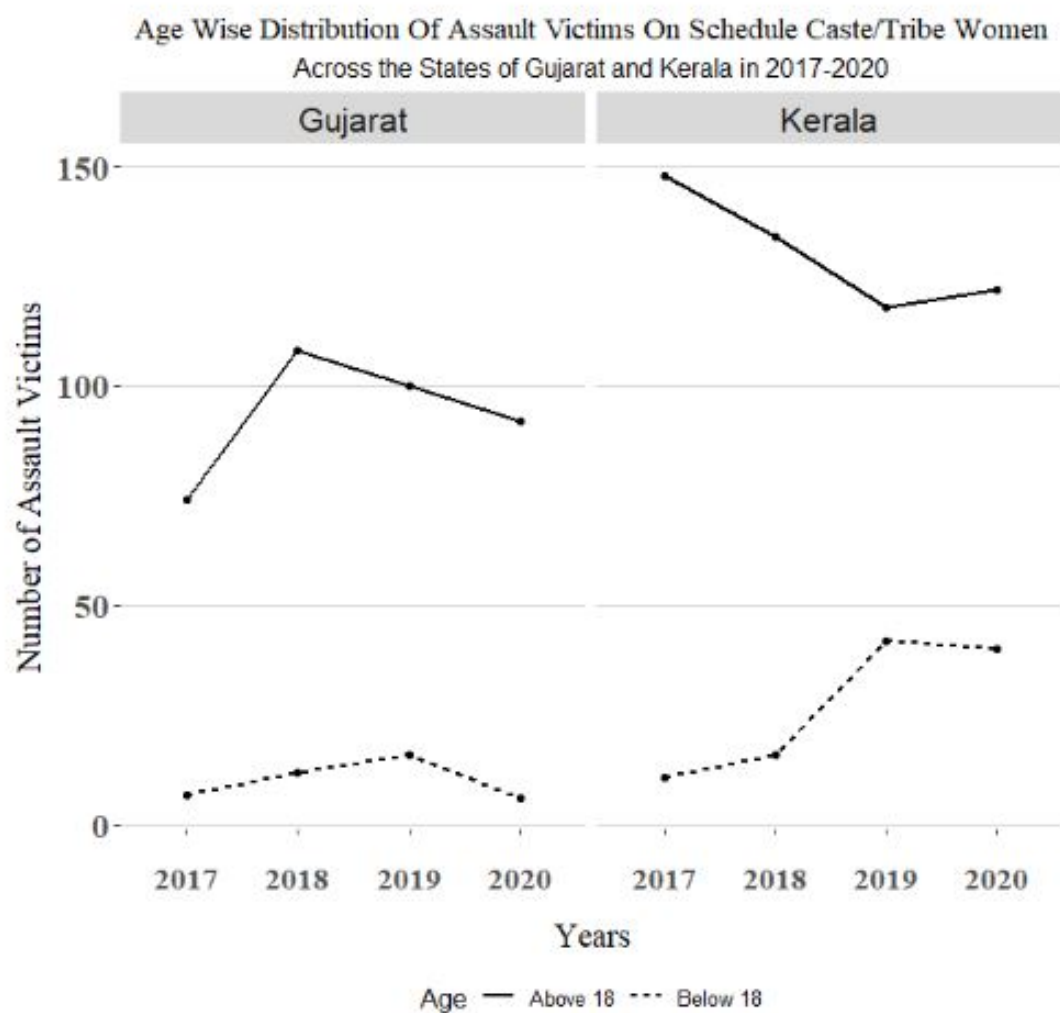
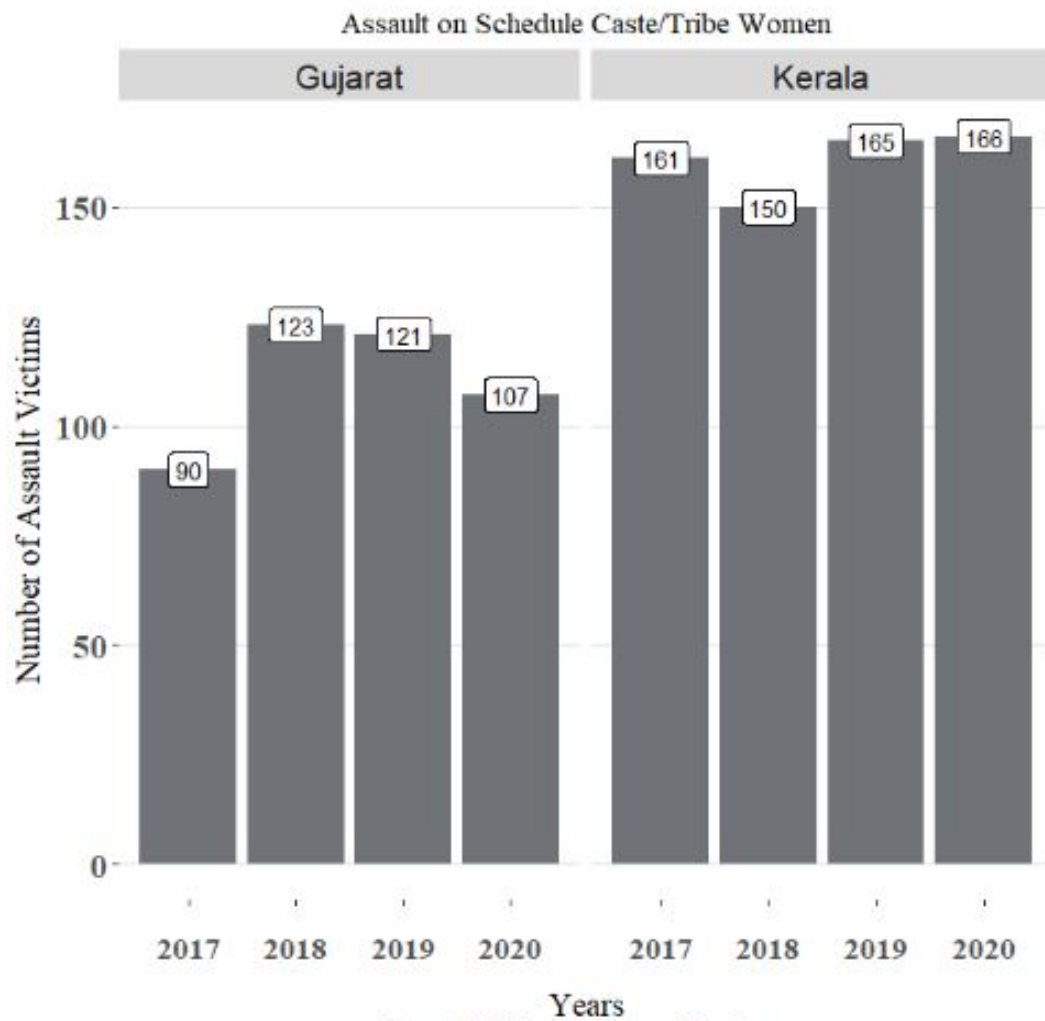


Figure 5.2:



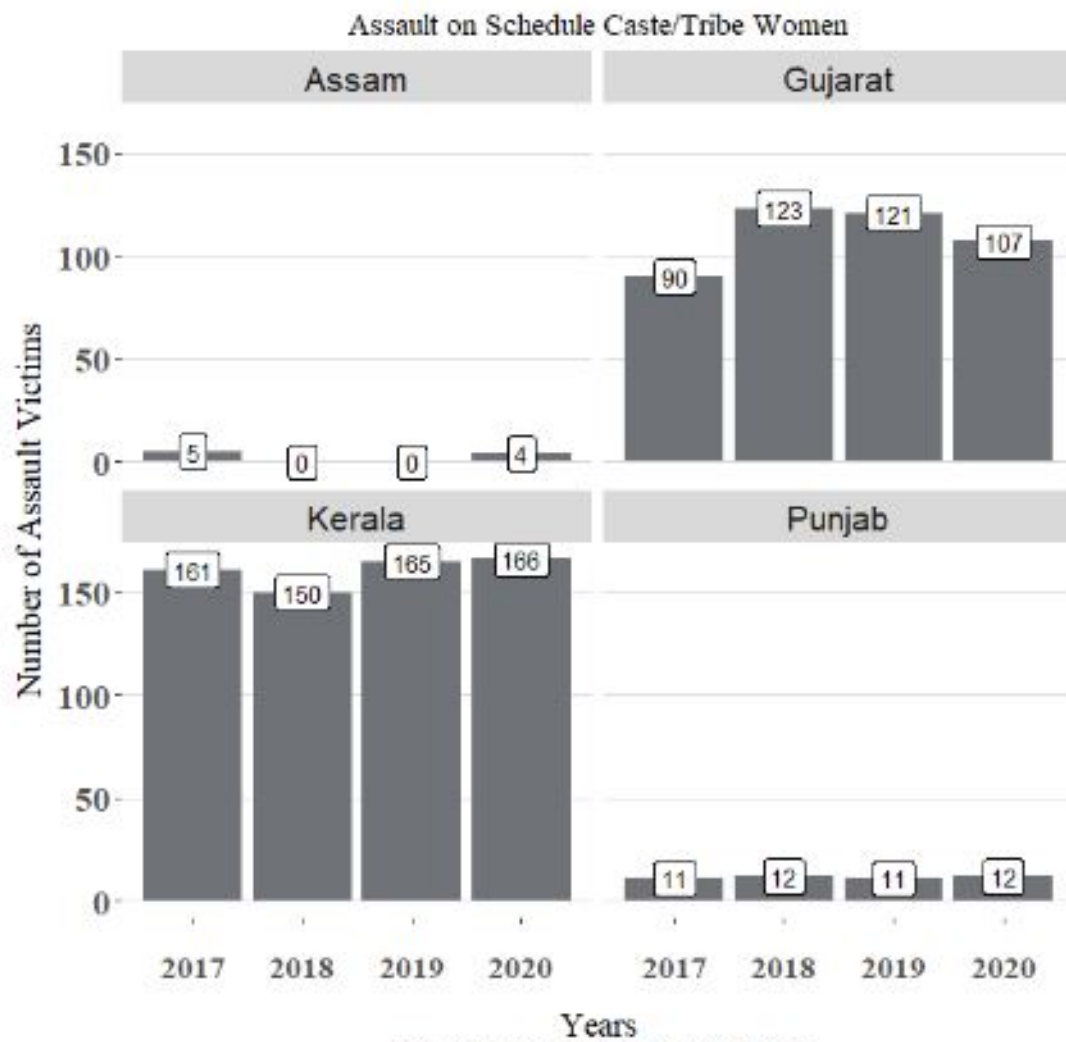
Source : NCRB Dataset- Crime in India Report

Figure 5.3:



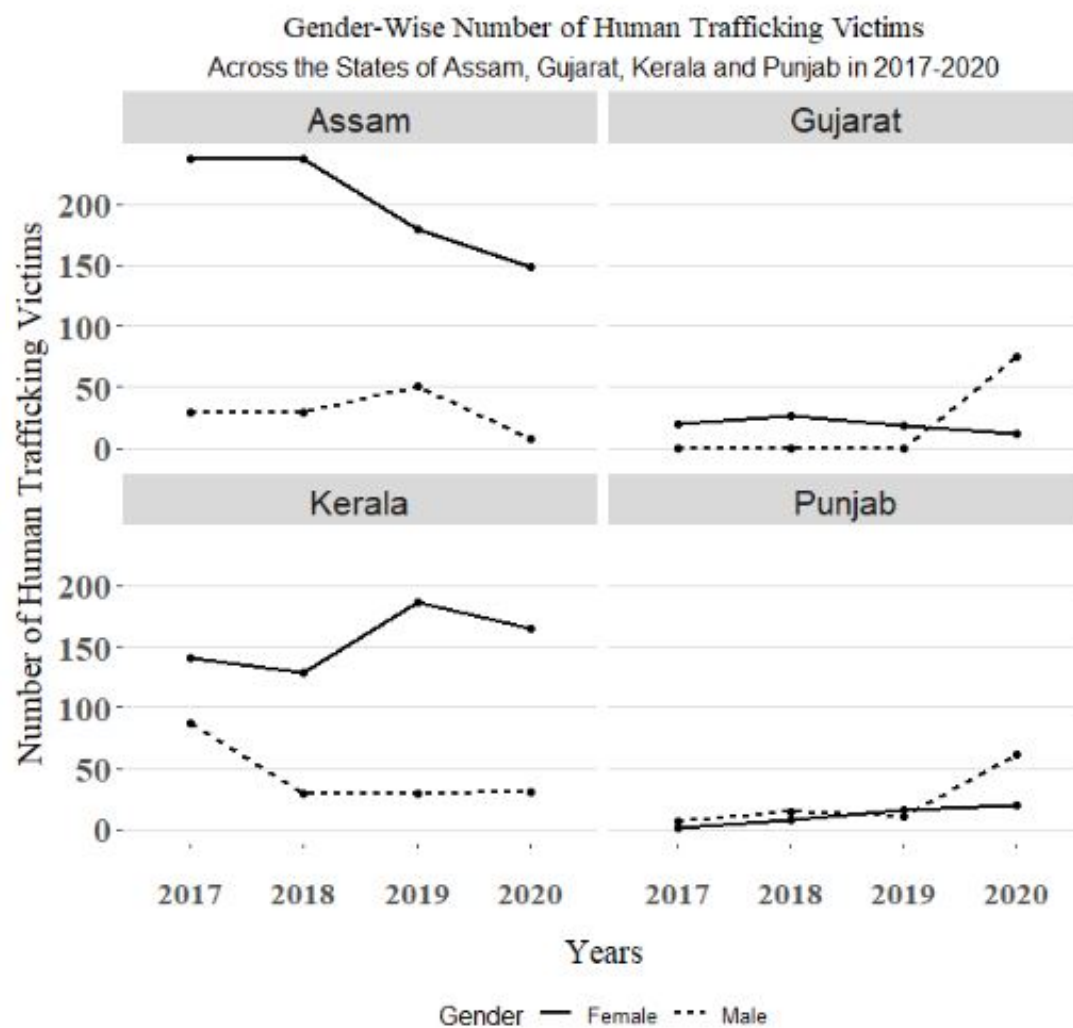
Source : NCRB Dataset- Crime in India Report

Figure 5.4:



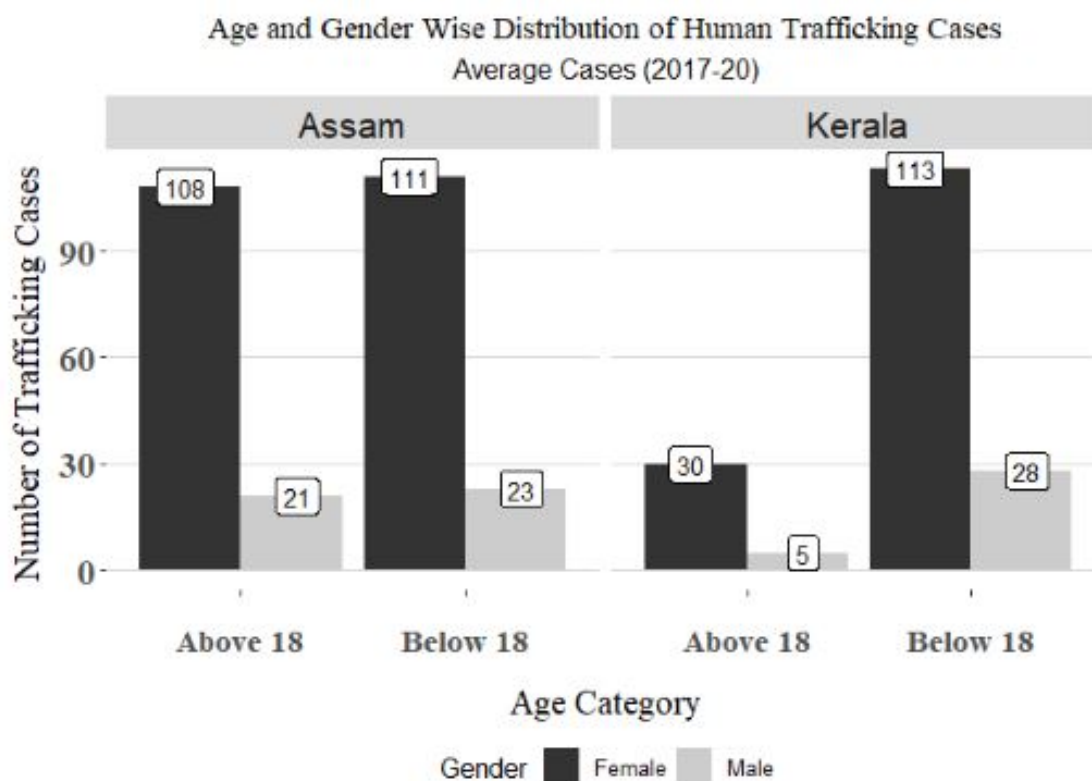
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Figure 5.5:



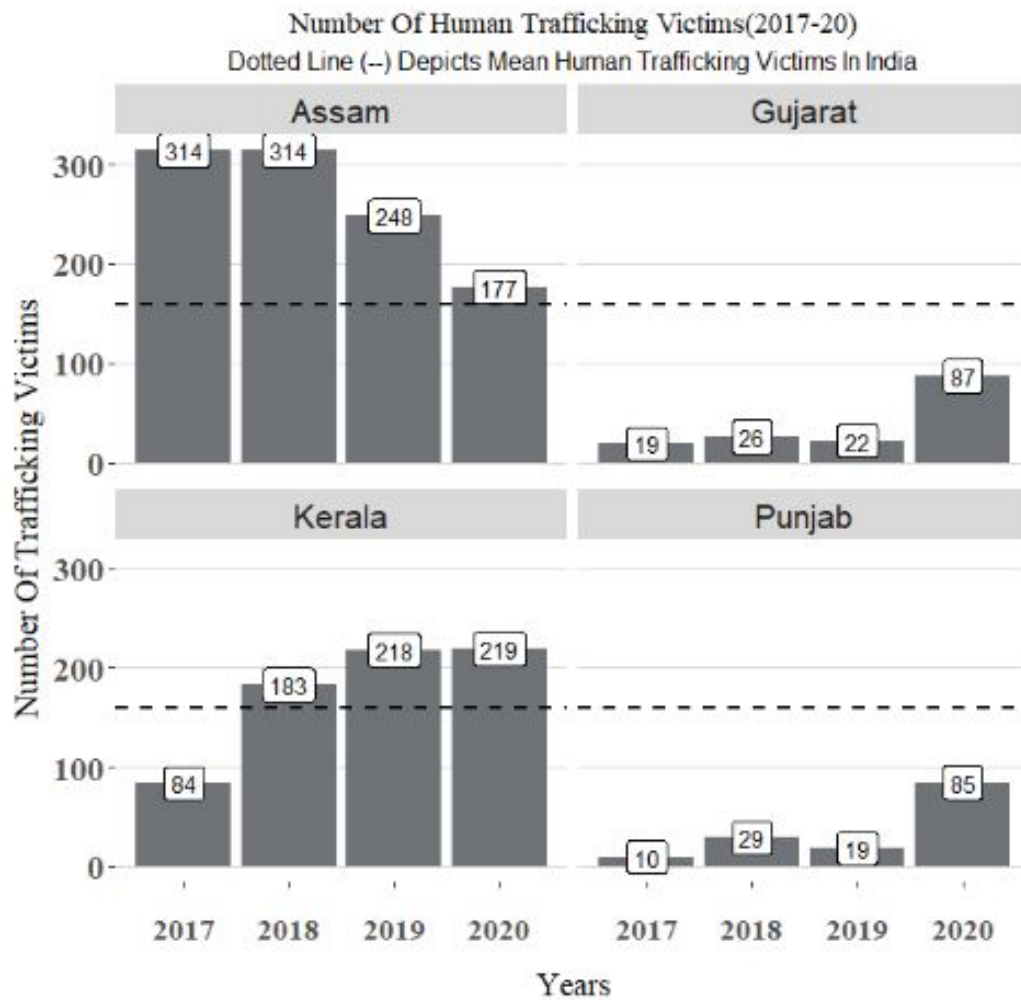
Source : NCRB Dataset- Crime in India Report

Figure 5.6:



Source : NCRB Dataset- Crime in India Report

Figure 5.7:



Source : NCRB Dataset- Crime in India Report

Figure 5.8:

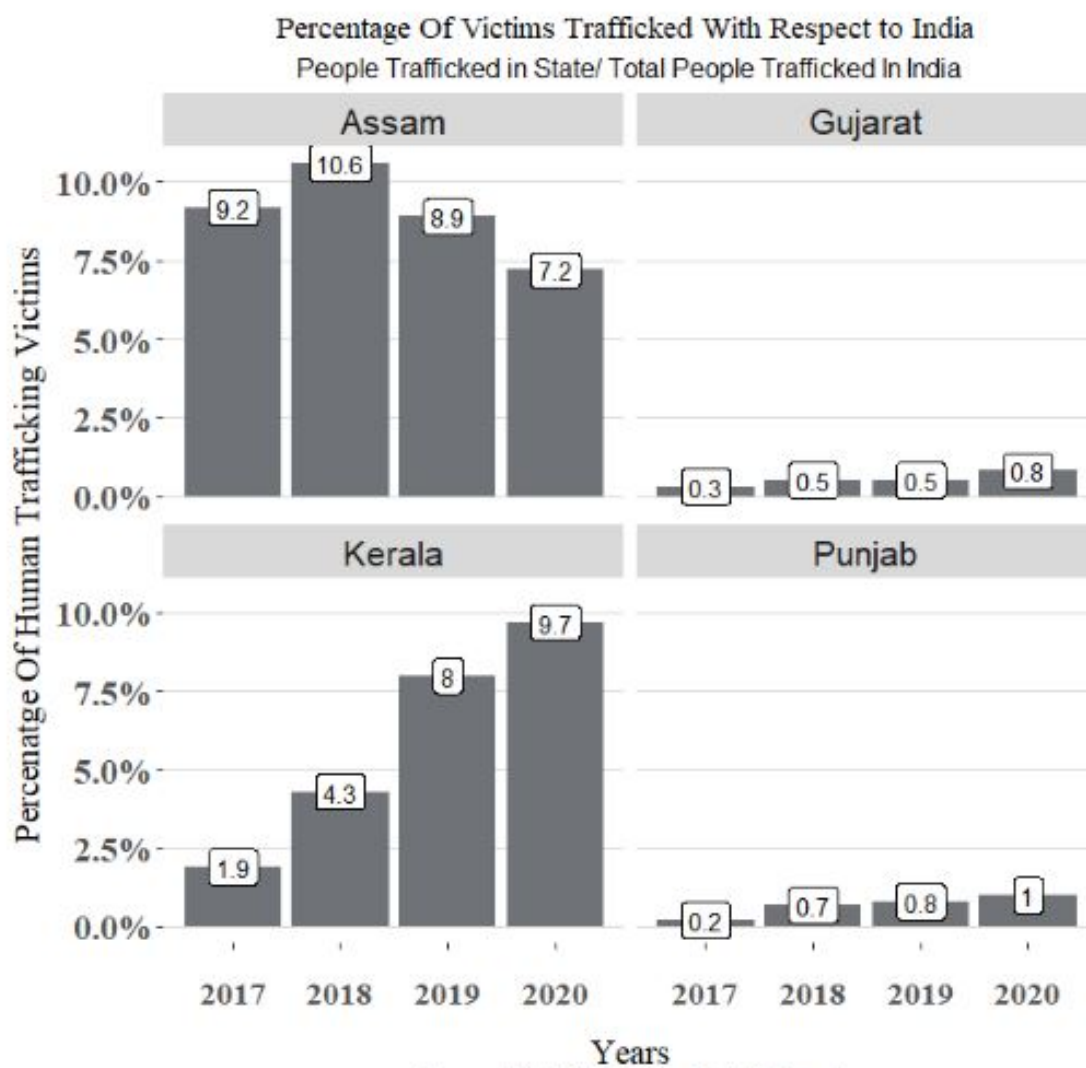
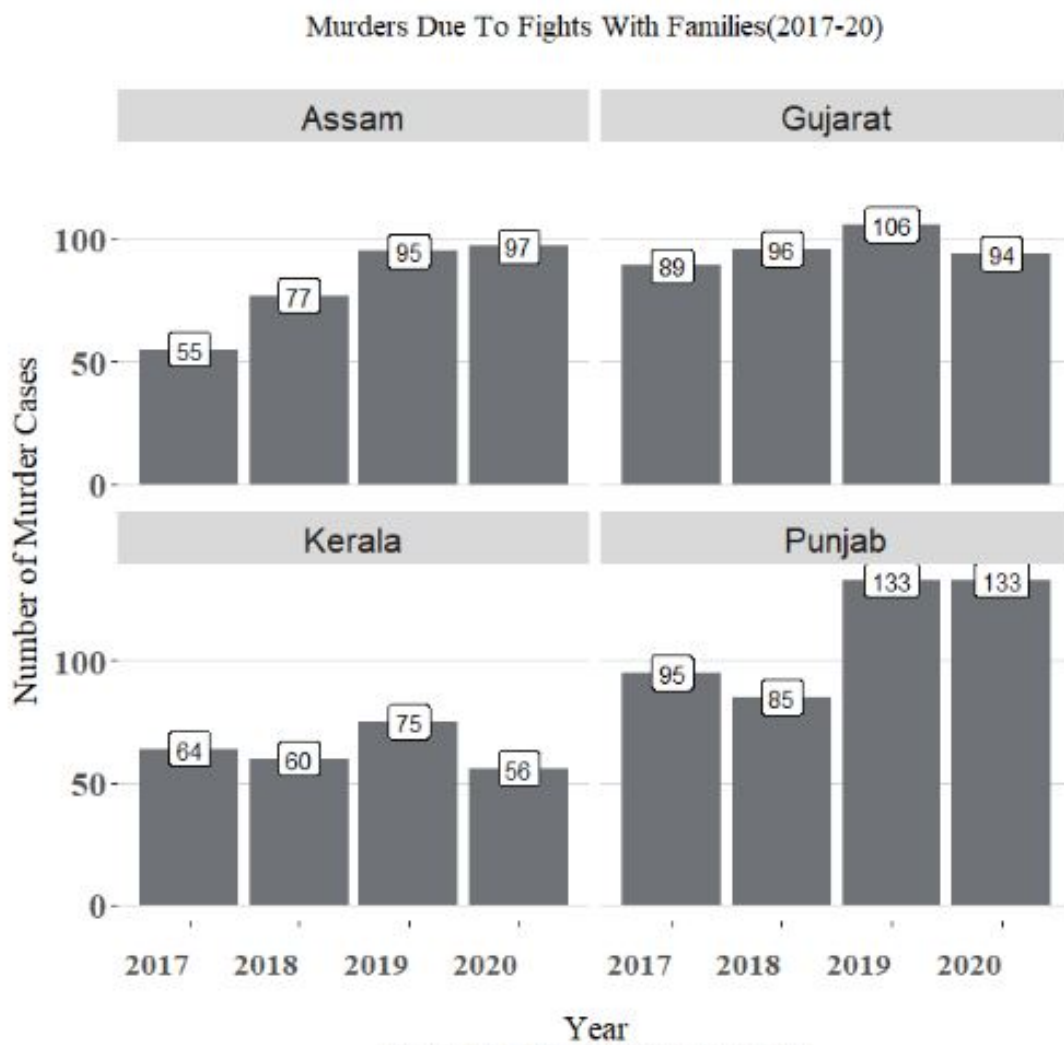
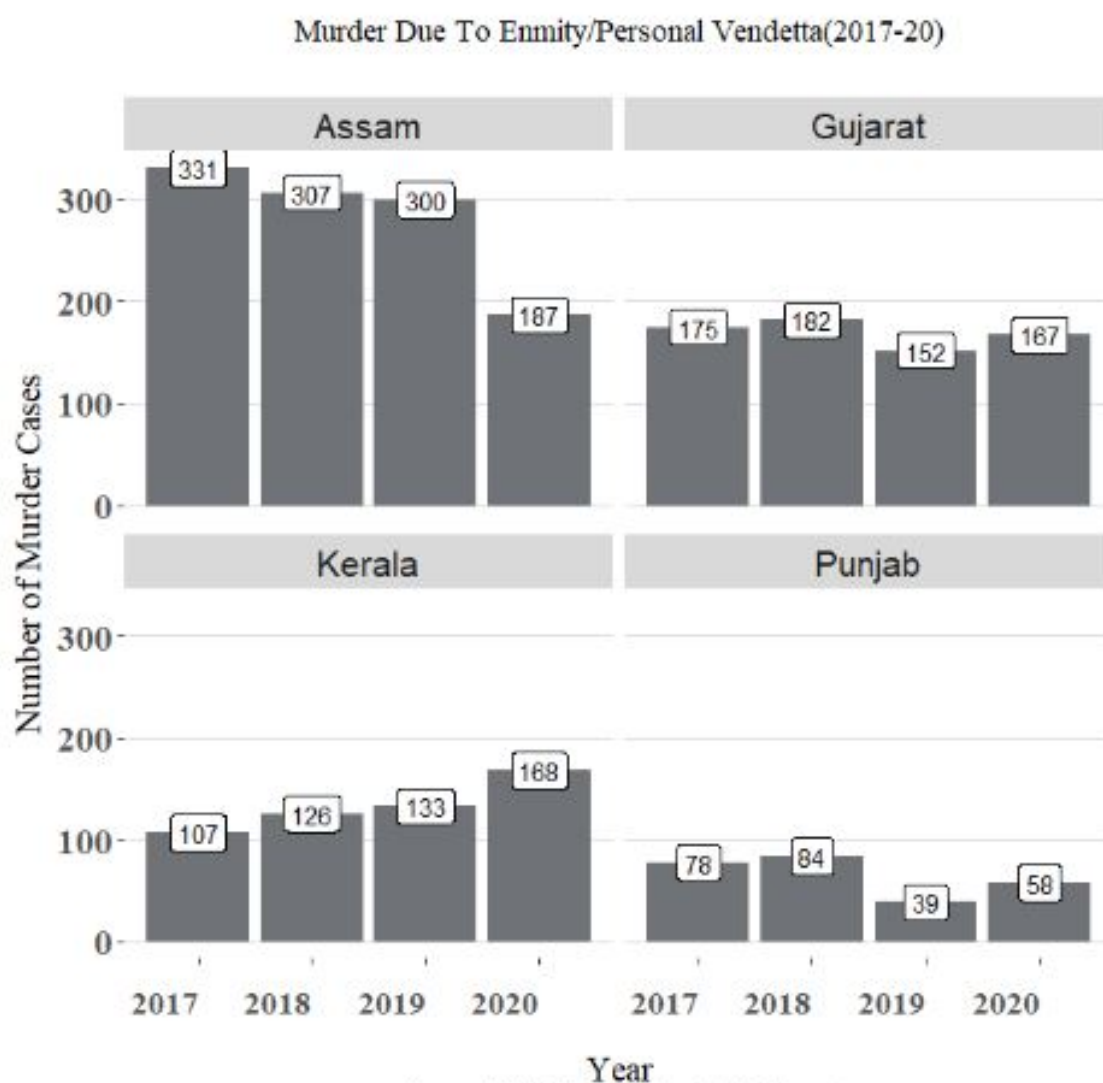


Figure 5.9:



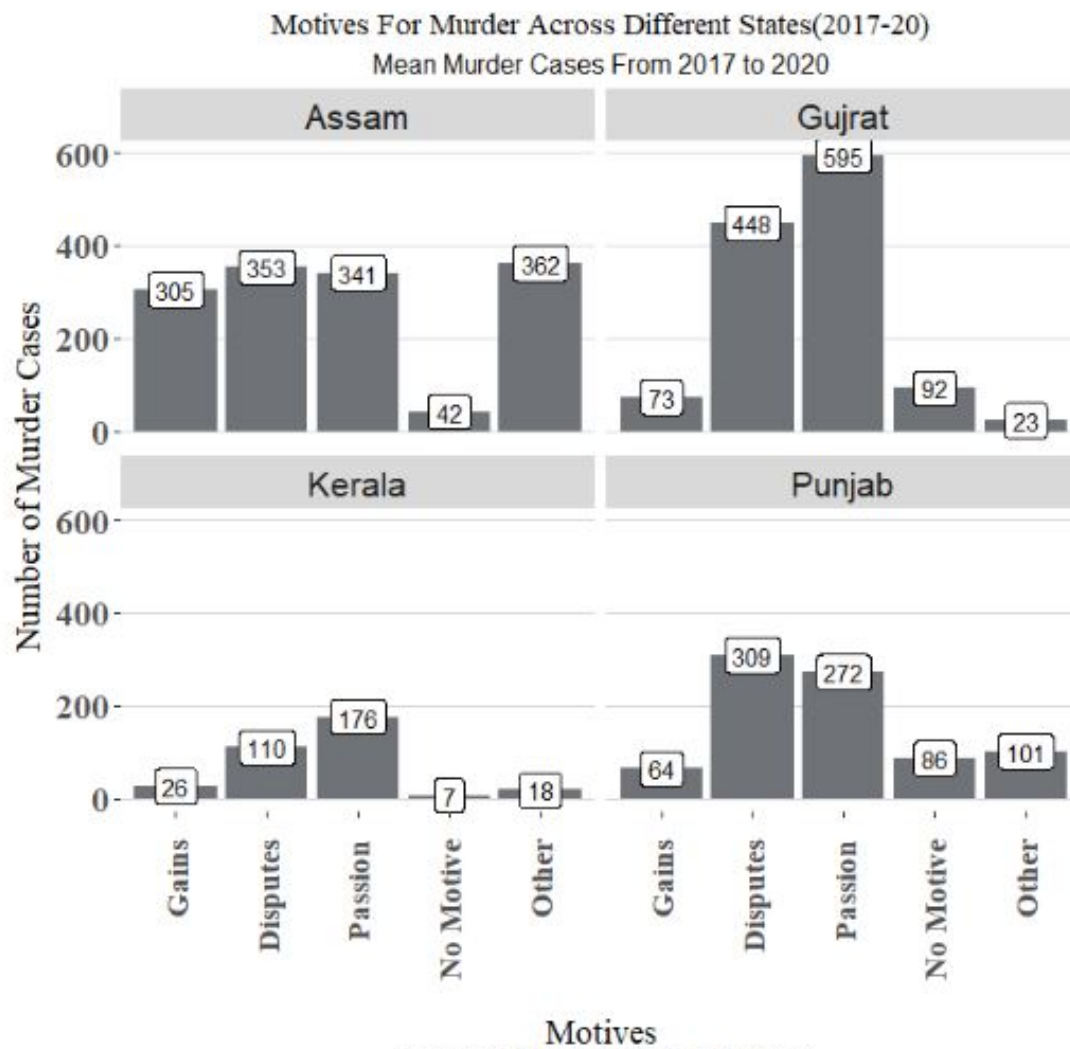
Source : NCRB Dataset- Crime in India Report

Figure 5.10:



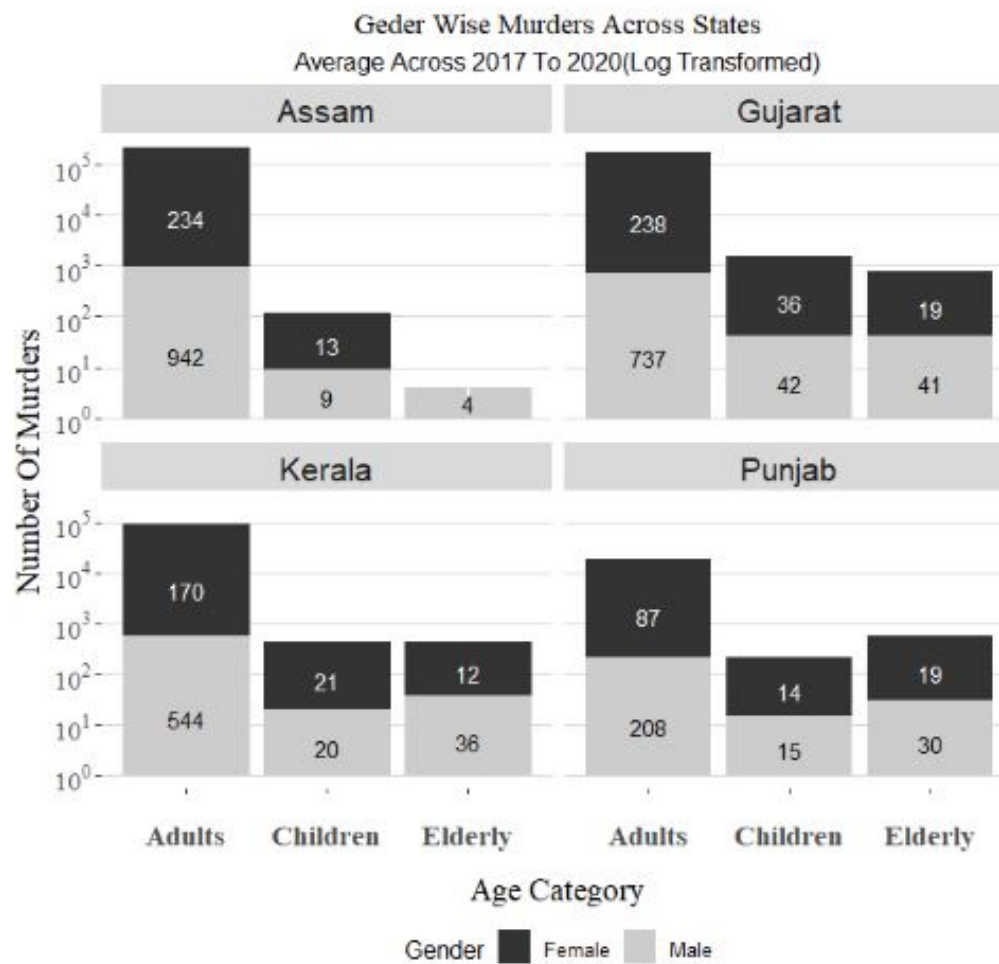
Source : NCRB Dataset- Crime in India Report

Figure 5.11:



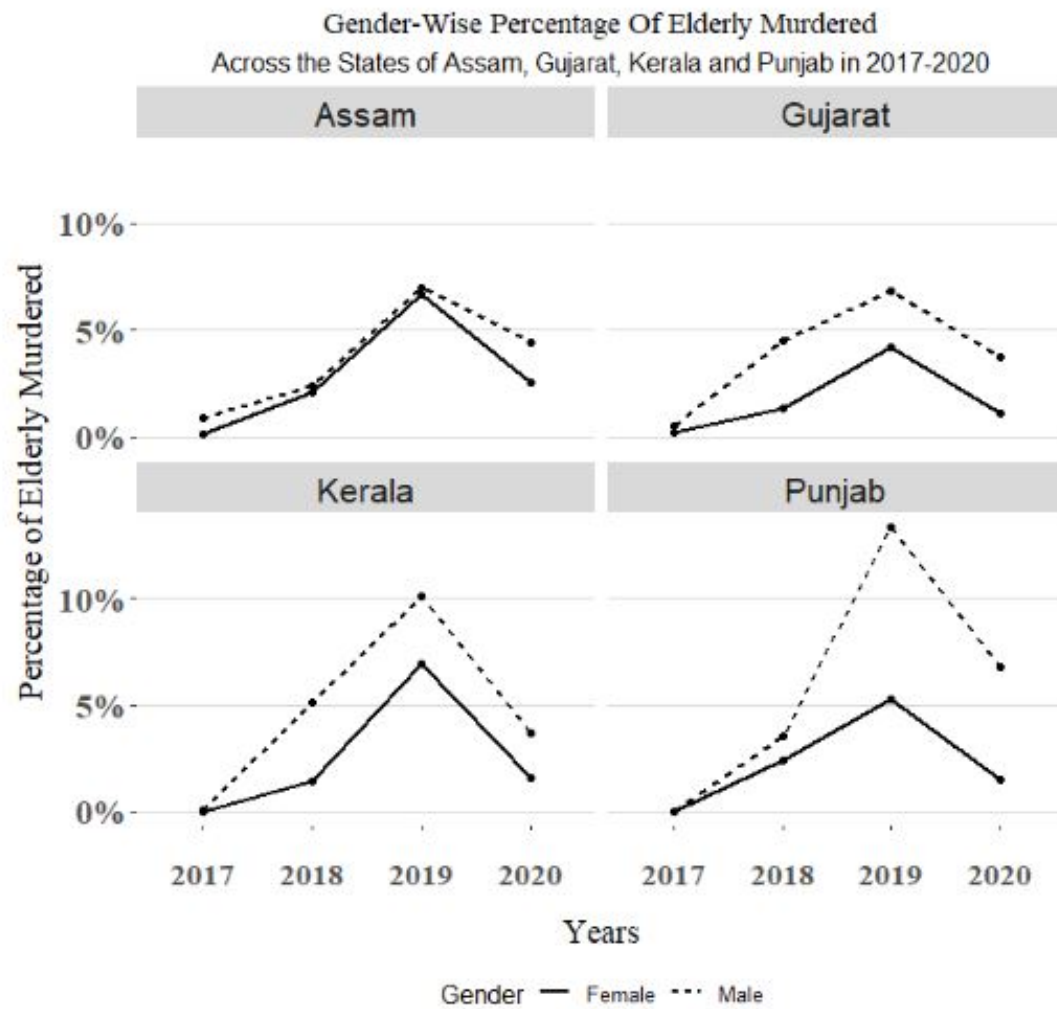
Source : NCRB Dataset- Crime in India Report

Figure 5.12:



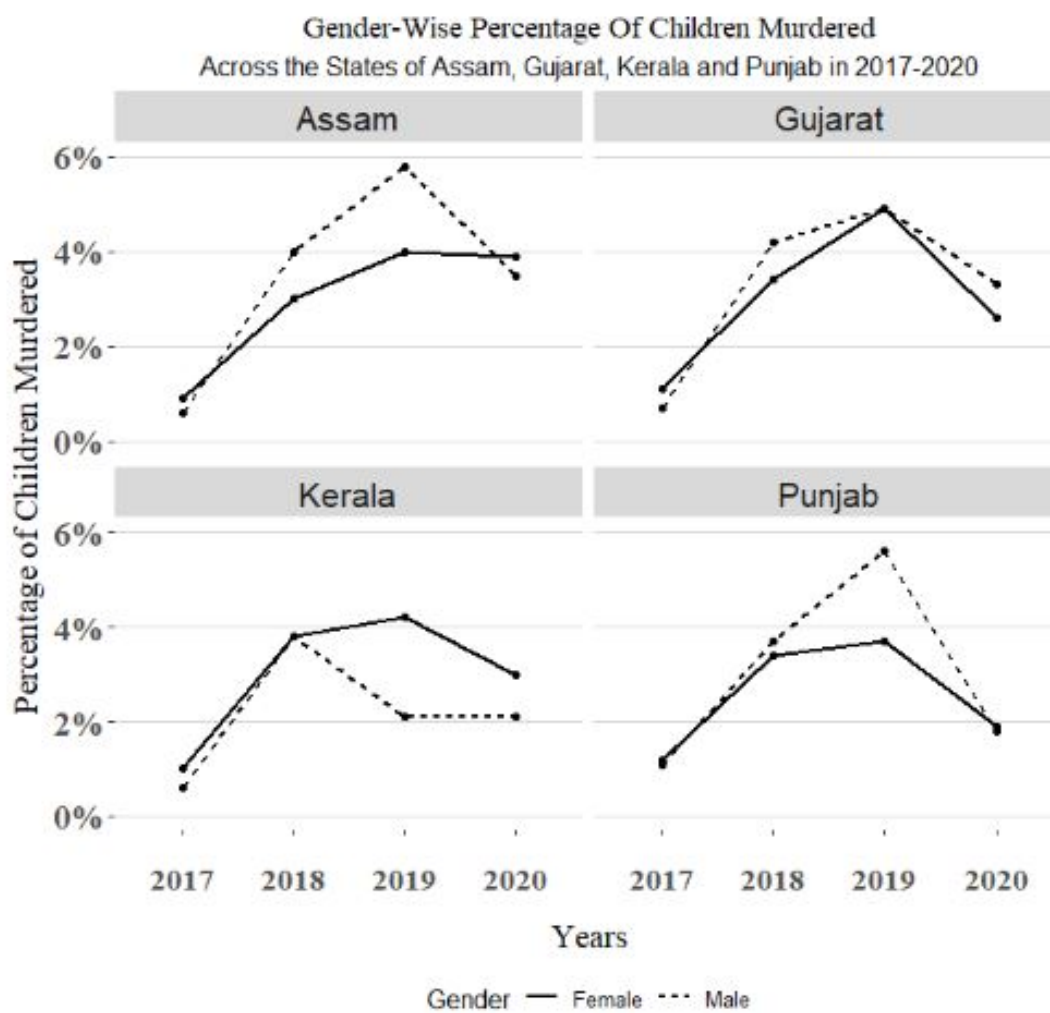
Source : NCRB Dataset- Crime In India Report

Figure 5.13:



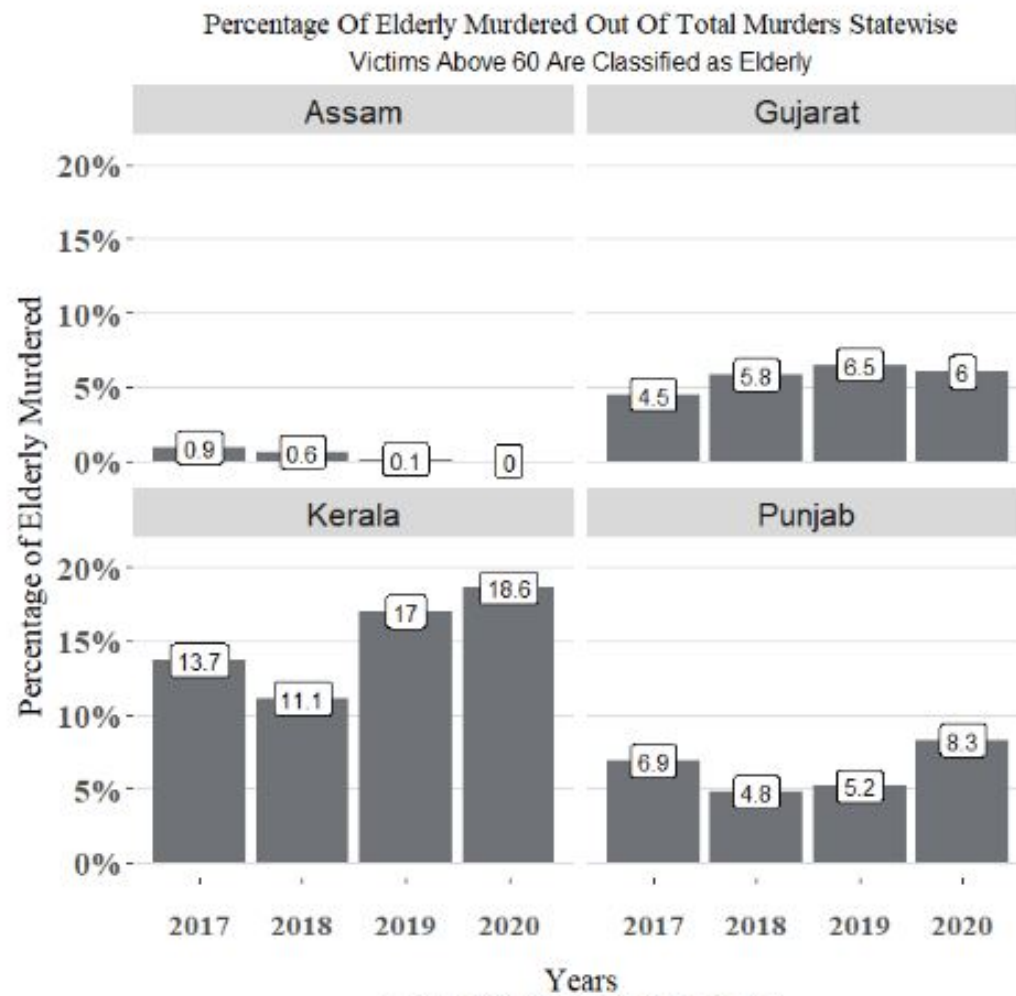
Source : NCRB Dataset- Crime in India Report

Figure 5.14:



Source : NCRB Dataset- Crime in India Report

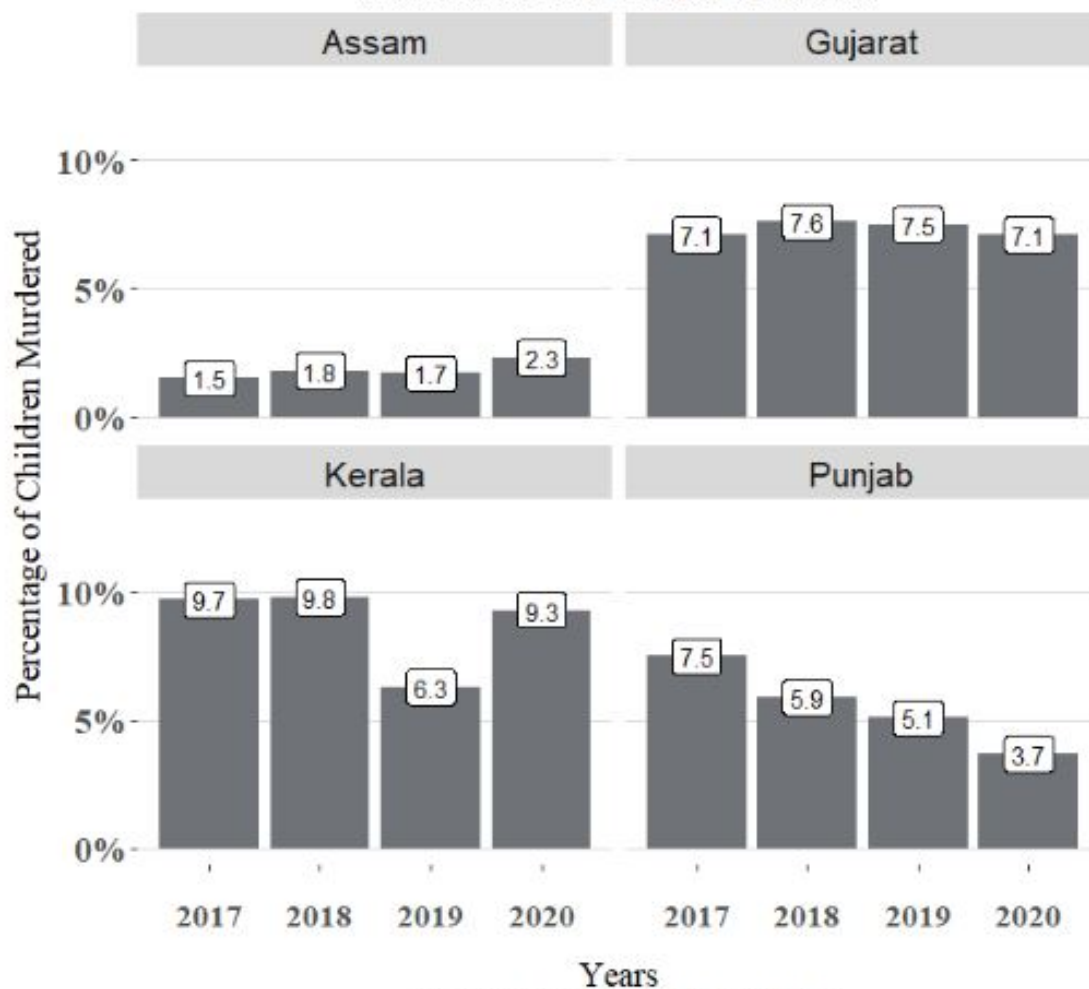
Figure 5.15:



Source : NCRB Dataset- Crime in India Report

Figure 5.16:

Percentage Of Children Murdered Out Of Total Murders Statewise
Victims Below 16 Are Classified As Children



Source : NCRB Dataset- Crime in India Report

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